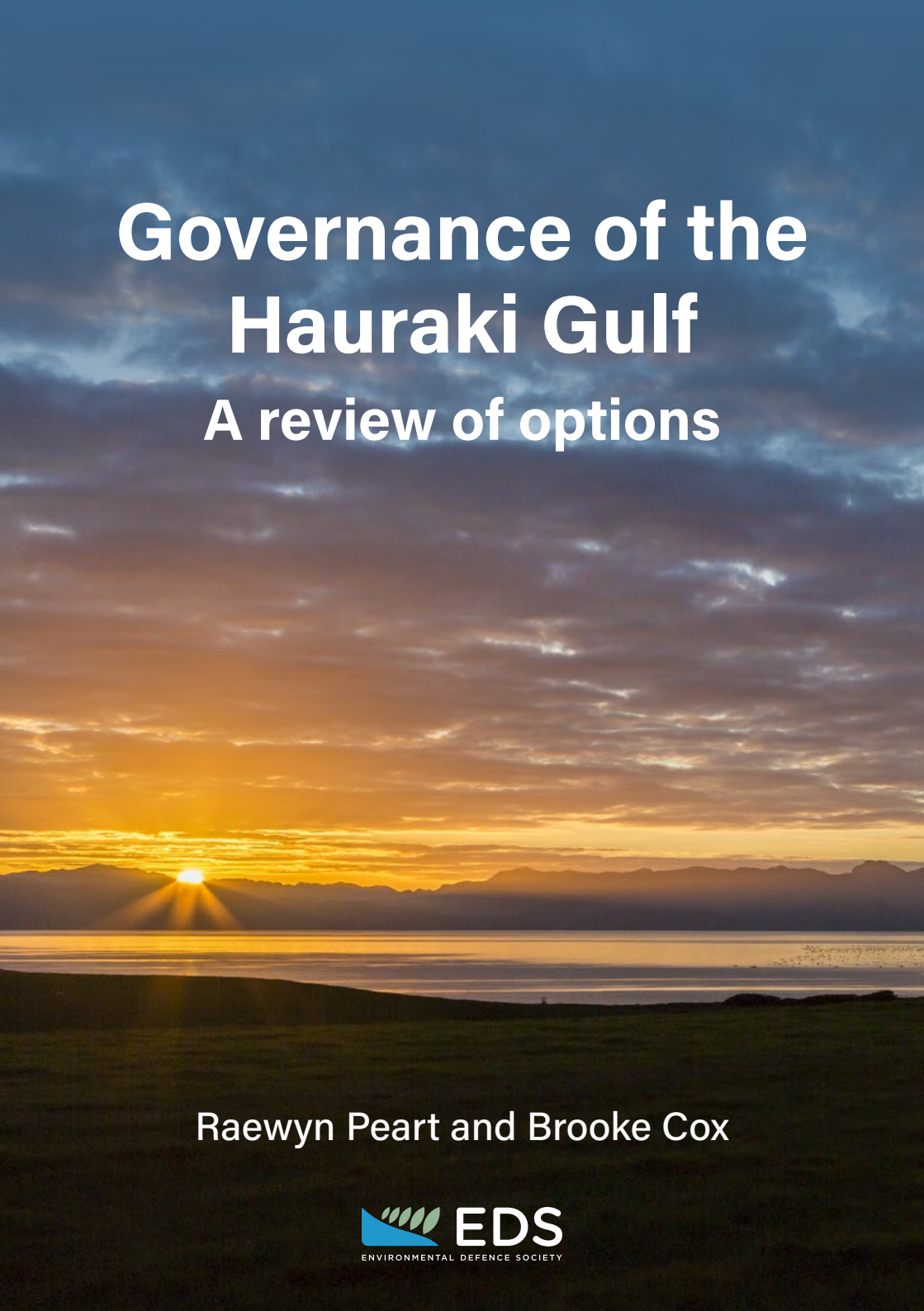




Governance of the Hauraki Gulf

A review of options

Raewyn Peart and Brooke Cox

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Environmental Defence Society



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EXECUTIVE SUMMARY



Tiritiri Matangi

This report reviews governance options for the Hauraki Gulf, a place of national significance. The Hauraki Gulf Forum, which was established under the Hauraki Gulf Marine Park Act 2000, currently serves as an integrative body for the Gulf. Its functions include recognising the relationships of tangata whenua with the Gulf; integrating its management; and fostering communication, cooperation and coordination between the relevant management agencies. It has been in operation for close to 18 years.

The Forum's activities have expanded considerably during its lifetime. Early on, it focused on identifying strategic issues and reporting on the state of the Gulf, both functions required under the legislation. When a permanent executive officer was appointed in 2007, the Forum put increasing emphasis on communication to build public and agency awareness of the Gulf's state, pressures and needs. Near the end of 2010, the Forum, alongside others, began to advocate for specific mitigation and remediation activities and later supported the initiation of the Sea Change – Tai Timu Tai Pari marine spatial planning process (Sea Change). This developed a marine spatial plan for the Hauraki Gulf Marine Park in order to reverse environmental decline and improve ecosystem health, mauri (essential quality and vitality) and abundance.

The ecological health of the Gulf has been in decline for more than a century and there is public concern regarding the effectiveness of efforts undertaken by agencies responsible for managing it. In 2015, the Forum initiated a review carried out by Nigel Bradly from Envirostat Limited. The report challenged the Forum to consider reconstituting itself to provide more effective leadership in addressing the issues facing the Gulf and to meet changing external expectations. In 2016, the Forum commissioned a second report, written by Paul Beverley, Vaughan Payne and Mark Maloney, which made specific recommendations about membership and functions of a revamped organisation. It recommended that the Forum be changed to a co-governance model with reduced numbers, be comprised of politically aware individuals, and have equal numbers of mana whenua and other members. It also suggested that the Forum needed to promote a clear understanding of the purpose of the Hauraki Gulf Marine Park Act as well as the Forum itself and that it should have more statutory authority over the Gulf. The Forum was divided about the recommendations and has been unable to progress them. This indicates that central Government intervention is likely required for the issue to be resolved.

In late 2016, Sea Change produced a marine spatial plan which contained numerous recommendations and some observations on the type of governance arrangements (not necessarily involving the Forum) required to deliver the marine spatial plan. It suggested that a governance body for the Gulf required a sufficient but manageable representation of various groups and skills, should apply co-governance membership principles, should consist of people who have the ability to influence others, should provide for central and local government to be advisors, and should be sufficiently mandated to contribute meaningfully to the outcomes sought by the marine spatial plan. Fundamentally, the marine spatial plan recommended an 'institutional champion' with an advisory and decision-making role to accept, adopt, implement and revise the marine spatial plan.

As is evident from the above, the future of the Hauraki Gulf Forum has been a subject of active discussion amongst the Hauraki Gulf community for some years. The Environmental Defence Society (EDS) decided to undertake wider research relevant to the future form and function of a governance entity for the Gulf to help inform this discussion. The research was not commissioned by the Forum and was undertaken independently of it. Due to budgetary constraints, the project focused on undertaking a desktop study of literature and other relevant material, and did not include engagement with mana whenua or Gulf stakeholders. However, it draws on the findings of a series of reports

(referred to above) which have canvassed wider views on current and potential future configurations for the Forum.

After a brief introductory chapter, Chapter 2 describes the concept of natural resource governance. More recently governance arrangements have moved towards a decentralised, collaborative approach between government and non-government actors from indigenous peoples, the private sector and civil society. The ability for central government to respond to complex 'wicked' problems on its own has reduced and so collaboration is becoming increasingly favoured in order to manage resources effectively.

The theory behind decentralised governance is closely related to common property theory. In 1990, Elinor Ostrom posited eight design principles that, if adhered to by resource users, could reverse environmental decline and allow sustainable governance of the commons. Ostrom emphasised there is no one-size-fits-all approach to governance, and the local context and circumstances must be understood. The eight design principles are:

1. Define clear group boundaries
2. Match rules governing use of common goods to the local needs and conditions
3. Ensure that those affected by the rules can participate in modifying the rules
4. Ensure that the rule-making rights of community members are respected by outside authorities
5. Develop a system, implemented by community members, for monitoring members' behaviour
6. Use graduated sanctions for rule violators
7. Provide accessible, low-cost means for dispute resolution
8. Build responsibility for governing the common resource in nested tiers from the lowest level up to the entire interconnected system



Medlands Beach, Aotea Great Barrier Island

Ostrom's work has informed much thinking and policy on governance but has also been criticised. Some academics have argued that the principles erode the democratic process, are vulnerable to elite capture, cause problems with accountability and legitimacy, and do not pay sufficient attention to public good outcomes. Despite these shortfalls, there has been a perceptible shift in the literature from 'government' to 'governance', and any moves to establish a new entity for the Hauraki Gulf should recognise this trend during the institutional design process.

Governance can mean different things in different contexts and an all-encompassing definition is elusive. Essentially, it refers to the legal rules, institutional arrangements and practices which determine who controls the thing being governed and who gets the benefits that flow from it. Governance is a process through which government, the private sector and civil society articulate their interests, exercise their rights and obligations and mediate their differences. Fundamentally, governance is about power, relationships and accountability – who has influence, who decides, and how decision-makers are held accountable.

Collaborative governance is where one or more public agencies directly engage non-state actors in a collective decision-making process that is formal, consensus orientated and deliberative, and that aims to make or implement public policy. The group is organised and meets collectively. Eight 'good governance' principles can be identified from the literature to guide the design of collaborative governance arrangements:¹

1. *Legitimacy* – the entity needs to be validated through statutory provisions or through stakeholder acceptance of its authority to govern
2. *Transparency* – those affected by the decisions should be able to understand how, why and who made those decisions
3. *Accountability* – the entity should be responsible to higher level authorities, to authorities on the same level and to resource users and the community
4. *Inclusiveness* – all those with a stake in the governance process should be able to engage in the process on an equal basis to all other stakeholders
5. *Fairness* – all those charged with advancing the governance arrangement are expected to be fair and equitable in the exercise of their authority
6. *Integration* – the entity should be connected between different scales of government, policy sectors and regions
7. *Capability* – the entity should include members with the requisite skills, knowledge and leadership capabilities
8. *Adaptability* – the entity should be able to rearrange its internal processes and procedures to respond to changing internal and external conditions

Chapter 3 investigates three collaborative governance examples from overseas: the West Coast Aquatic Governance Board (Canada), the Sussex Inshore Fisheries and Conservation Authority (England) and the Great Barrier Reef Marine Park Authority (Australia). These examples were selected for analysis as they each govern the marine area in different ways. The entities are scrutinised through the lens of the good governance principles set out above to identify lessons of relevance to the New Zealand setting. The analysis concludes that each respective model has its strengths and weaknesses, and that institutional design needs to be sensitive to the local context.

Chapter 4 focuses on natural resource governance in New Zealand. New Zealand has a unique way of governing natural resources to reflect the Crown-iwi partnership encapsulated in the Treaty of Waitangi. Treaty settlements have resulted in co-governance arrangements being negotiated whereby iwi and Crown operate in a power-sharing capacity to make important decisions about natural resources and areas. In co-governance schemes, iwi representatives and Crown agents (made up of representatives of territorial, regional and/or central government representatives) sit on governance boards. The Crown-iwi membership is generally equal or close to equal. Co-governance boards implement and make decisions under the Resource Management Act 1991, amongst other statutes.

Co-governance has been positively received by some and heavily criticised by others. Advocates have argued that such schemes strengthen Māori decision-making in resource management, help to decolonise public administration, and are a means of tangata whenua regaining respect. Some critics have said the schemes are a compromise for Māori while others see the system as undemocratic, stretching case law, and unable to reconcile the clash between mainstream science and tikanga Māori in order to achieve sustainable outcomes.

The chapter provides an overview of six co-governance entities. The Waikato River Authority, Te Urewera Board and the Tūpuna Maunga o Tāmaki Makaurau Authority are then described in more detail and analysed against the good governance principles. The analysis reveals that co-governance entities have broadly similar attributes: the entities have between eight and 12 members, generally comprise half iwi (selected through tikanga processes) and half Crown representatives (who are either elected or appointed), and have terms of three to five years. The purpose of each entity is



Piritahi Marae, Waiheke Island

usually to establish a management plan for the area in collaboration with local authorities and to administer funding. Decisions are predominantly made by consensus. The management plans are approved by local authorities and the appropriate Ministers.

Chapter 5 posits that the Hauraki Gulf Forum is the natural 'institutional champion' of the Hauraki Gulf and recommends that changes be made to the Forum's size, composition, mana whenua representation and functions to address the governance issues identified in previous reports. Such reconfiguration would need to be accommodated by legislative changes to the Hauraki Gulf Marine Park Act. In the interim, the Forum could create a smaller 'core group' of members who could drive a stronger focus on strategic governance and advance the case for change to the legislation.

The chapter suggests the Forum could be reconfigured in line with best practice into an entity that has:

- Between eight and 12 members
- A third to one half of members representing mana whenua
- Potentially greater stakeholder representation



Ladies Bay, Rotoroa Island

There are many options as to how this could be achieved. This report presents three possible configurations, which are summarised in the figure below.

	Strengths	Weaknesses
Model 1: Mana whenua/Crown experts co-governance • 6 appointed by mana whenua • 6 experts appointed by Ministers • Invitation to central, regional and local authorities to act as observers	• Reduced and simplified membership • Based on influence and expertise rather than representation • Independent and apolitical	• Mana whenua do not have increased membership overall but there is a proportionate increase • Local non-indigenous knowledge is not included • Community representatives and local authorities are not directly involved, which could threaten legitimacy and accountability
Model 2: Mana whenua/Crown experts/community representatives co-governance • 6 appointed by mana whenua • 3 experts jointly appointed by Ministers pursuant to nominations solicited from local/regional authorities • 3 community representatives jointly appointed by Ministers pursuant to nominations solicited from the Gulf community • Invitation to central, regional and local authorities to act as observers	• Reduced and simplified membership • Includes a mix of technical expertise and local knowledge • Independent and apolitical • Community representatives directly involved	• Mana whenua do not have increased membership overall but there is a proportionate increase • Local authorities are not represented which could threaten legitimacy and accountability
Model 3: Mana whenua/local government/community representatives co-governance • 6 appointed by mana whenua • 3 jointly appointed by regional/local authorities • 3 community representatives jointly appointed by Ministers pursuant to nominations solicited from the Gulf community • Invitation to central government to act as observers	• Reduced and simplified membership • Includes local knowledge • Involves regional and local government more directly	• Does not include technical expertise (but this can be provided by staffing) • Representative model is said to have been a key contributor to the governance difficulties identified in the Bradley Report (in the event that local government politicians are appointed)

The precise configuration needs to reflect the powers and functions of a reconfigured Forum. For example, to the extent that the Forum has direct regulatory powers, then some political representation may be necessary to ensure accountability. A reconfigured Forum could adopt one of the following functions, with the 'Champion' function being in line with other co-governance models operating in New Zealand and the 'Regulator' function being more consistent with some overseas models, including the Sussex Inshore Fisheries and Conservation Authority and Great Barrier Reef Marine Park Authority:

- *The Communicator* – the Forum would continue to be an oversight entity for the Gulf and extend its roles in communication and advocacy.
- *The Champion* – the Forum would play a more direct role in the planning and policy process by producing a Gulf management plan and supporting its implementation.
- *The Regulator* – the Forum would substantially increase its power to grant consents in the Gulf area and enforce compliance with regulations.

EDS recommends that the role of the Forum be strengthened so that it acts as the 'champion' of the Gulf with a focus on playing a more direct role in statutory planning and policy processes in order to implement sections 7 and 8 of the Hauraki Gulf Marine Park Act. Under this proposal the Forum would:

- Lead strategic-wide initiatives in the Gulf
- Prepare and approve an 'Integrated Management Plan' for the Gulf which other planning documents must 'give effect' to
- Advise the range of agencies and local authorities with responsibilities in the Gulf on how to implement the Integrated Management Plan
- Ensure other planning documents give effect to the Integrated Management Plan
- Monitor the carrying out of the functions of the Forum, the state of the Gulf, and the implementation of the Integrated Management Plan including the achievement of any targets it sets
- Periodically review the Forum and the Integrated Management Plan every five years and report on their effectiveness to the Crown

In order to undertake this strengthened role the composition of the Forum needs to change. EDS recommends that 'Model 3: Mana whenua/local government/community representatives co-governance', as shown in the figure above, be adopted. This would implement co-governance principles and include a mix of local government and community representatives who will need to be selected to ensure a broad skills mix. The local government representatives could be politicians or other knowledgeable people who bring a local government perspective.

There are strong indications that change is required. This report is intended to contribute to a constructive dialogue on how we can ensure that the Hauraki Gulf Forum is appropriately configured and empowered for the future.

1 INTRODUCTION



Bean Rock Lighthouse, Waitematā Harbour

The Hauraki Gulf Forum, which was established under the Hauraki Gulf Marine Park Act 2000, currently serves as an integrative body for the Hauraki Gulf. The Act recognises the Gulf as a place of national significance and outlines a number of management objectives for it. The architect of the Act envisaged the Forum as *'a collective of managers who could be spurred into action by the Forum. It was intended to be a place of big strategic debates and long-term intergenerational thinking about the future of the Gulf.'*² However, the Forum has received criticism over past few years due to its inability to effectively promote the objectives of the Act.³

The Environmental Defence Society (EDS) decided to undertake research to help inform the discussion about the future of the Forum. The work was not commissioned by the Forum and was undertaken independently of it. Due to budgetary constraints, the project focused on undertaking a desktop study of literature and other relevant material, and did not include extensive engagement with mana whenua or Gulf stakeholders. However, it draws on the findings of a series of reports (referred to below) which have canvassed wider views on current and potential future configurations for the Forum. It endeavours to review the governance options for the Gulf and help design an entity that can provide the leadership necessary for the area.

After this introduction, the report begins with a review of the literature on natural resource governance, including the concept of collaborative governance. It then investigates three natural resource governance entities from overseas which have jurisdiction over the marine environment: the West Coast Aquatic Governance Board (Canada), the Sussex Inshore Fisheries and Conservation Authority (England) and the Great Barrier Reef Marine Park Authority (Australia). This is followed by an investigation into New Zealand's unique way of governing natural resources, due to the Treaty of Waitangi. Three co-governance entities are described in some detail: the Waikato River Authority, the Te Urewera Board and the Tūpuna Maunga o Tāmaki Makaurau Authority.

Finally the report focuses on the Hauraki Gulf, describing the provisions of the Hauraki Gulf Marine Park Act and the structure and functions of the Hauraki Gulf Forum. Sea Change – Tai Timu Tai Pari (Sea Change) and the Hauraki Gulf marine spatial plan are acknowledged, as well as three reports which review the Forum and the implementation of the marine spatial plan. The experience from overseas and New Zealand is drawn on to develop a number of options for improving the function, architecture and operation of the Forum.



Coromandel Harbour

2 NATURAL RESOURCE GOVERNANCE



Oneroa, Waiheke Island

Over recent decades, there has been a shift from centralised 'governance' of natural resources to the application of 'new governance' approaches to their management, both in New Zealand and overseas. New governance models are increasingly incorporating collaborative approaches between government, on one hand, and non-government actors from indigenous peoples, the private sector and civil society on the other. This change has occurred in a climate of increasing complexity, diversity and dynamic change such that no single actor has the resources or knowledge to respond to the complexity of 'wicked' problems.⁴ Further, owing to the non-linear or threshold effects that result in instability and unpredictability in global systems, such as that occurring with anthropogenic climate change,⁵ the ability of central government entities to solve these problems on their own has reduced. We are seeing simultaneous tendencies toward integration, centralisation and globalisation on one hand and disintegration, decentralisation and localisation on the other.⁶ Decentralisation of natural resource governance has largely been adopted in the belief that management closer to resource users, and in collaborative and community-based forms involving users, will lead to more democratic, accountable and effective governance.⁷ Research has rarely focused on the environmental outcomes of such governance arrangements, so it is difficult to say whether decentralisation has yielded better or worse results for the environment than its managerial and adversarial predecessors.



2.1 Common property theory

The theory behind the decentralisation of natural resource governance is closely related to common property theory. In 1968, Garrett Hardin published an influential paper describing the 'tragedy of the commons', in which humans overuse and deplete a common-pool resource even though it is not in their best interest to do so. Common-pool resources have two key characteristics: it is difficult to exclude people from their use, and extraction by one person affects the availability of the resource for others. This trend of overexploitation particularly plagues the commons, because the lack of individual ownership and inability to restrict usage incentivises actors to consume as much as possible of the shared resource before others do. This race to consume traps actors in a vicious cycle of mismanagement and overconsumption that ultimately leads to irreversible environmental degradation.⁸

The real tragedy of the scenario is that this self-interested behaviour is actually not in the best interest of any individual actor. Hardin did not believe that by working together the resource users could establish a system that benefited everyone involved while also protecting the common-pool resources for long-term use. He argued that the tragedy of the commons could only be avoided either through establishing private property rights in the resource or by placing it under the authority of a 'Leviathan'-type centralised power.⁹

Meanwhile, the work of Nobel Prize winner Elinor Ostrom suggested there was another way forward. One of Ostrom's key contributions to common property theory was the identification of a set of rules or principles that common-pool resource users can use to reverse environmental degradation and sustainably govern their commons.¹⁰ Her decades of research revealed that all successful cases of commons self-governance had eight principles in common (see Figure 1).

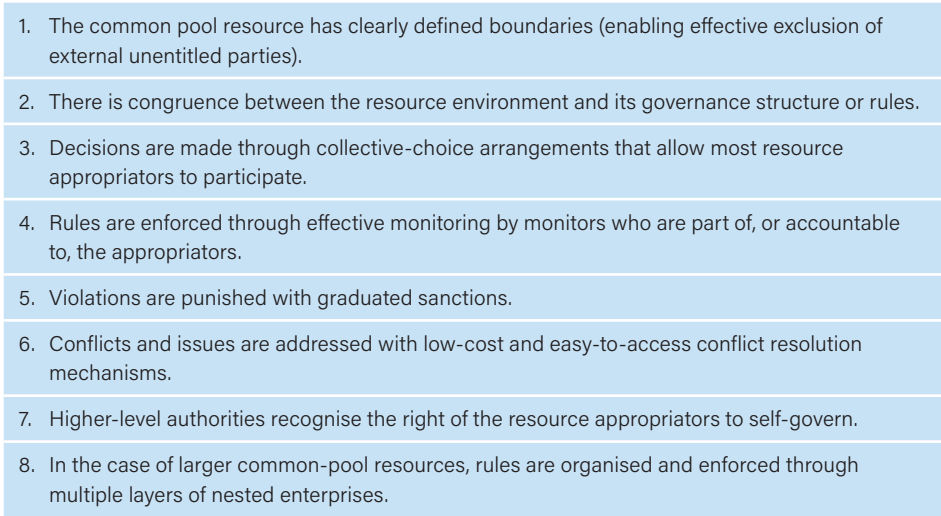
- 
1. The common pool resource has clearly defined boundaries (enabling effective exclusion of external unentitled parties).
 2. There is congruence between the resource environment and its governance structure or rules.
 3. Decisions are made through collective-choice arrangements that allow most resource appropriators to participate.
 4. Rules are enforced through effective monitoring by monitors who are part of, or accountable to, the appropriators.
 5. Violations are punished with graduated sanctions.
 6. Conflicts and issues are addressed with low-cost and easy-to-access conflict resolution mechanisms.
 7. Higher-level authorities recognise the right of the resource appropriators to self-govern.
 8. In the case of larger common-pool resources, rules are organised and enforced through multiple layers of nested enterprises.

Figure 1: *Design principles for common property resource institutions*¹¹

Ostrom later emphasised that the design principles should not suggest that one approach applies everywhere, arguing that there are 'no panaceas'; different responses are needed in different situations and points in time.¹² It is now widely accepted by natural resource governance scholars

that there is no one approach to governing natural resources sustainably that will work everywhere, and that the local circumstances and context must be understood.

Ostrom's rules have informed much thinking and policy on natural resource governance. This is despite growing literature on the downsides of decentralisation, including the erosion of democratic processes, elite capture, problems with accountability and legitimacy, and insufficient attention to public good outcomes. Such concerns indicate any new governance arrangement must be conscious of these potential shortcomings. Hardin's approach has also remained popular and has led to the privatisation of the commons through such mechanisms as creating individual tradeable quota in fish stocks. These two competing paradigms – centralised versus self-governance – have been playing out internationally over the past few decades.

2.2 Governance

An all-encompassing definition of governance is difficult to find. This reflects the complex nature of the term and the subjective nuances that governance engenders. Governance can mean different things in different contexts.¹³

A useful base definition can be found in the *International Encyclopaedia of Social and Behavioural Sciences*, which states that governance refers to *'the legal rules, institutional arrangements and practices that determine who controls the entity being governed and who gets the benefits that flow from it. Governance includes how major policy decisions are made, how various stakeholders can influence the process, who is held accountable for performance, and what performance standards are applied.'*¹⁴

The need for governance has been said to exist *'anytime a group of people come together to accomplish an end ... every form of social grouping may be said to exhibit attributes of governance'*.¹⁵ Governance includes formal institutions and regimes as well as informal arrangements that people and institutions have either agreed to or have perceived to be in their best interest.¹⁶

Steven Bernstein, in a paper examining environmental governance, states *'governance, at any time and in any place, is the sum of collective understandings and discourse about material capabilities, knowledge (normative, ideological, technical and scientific), legitimacy (the acceptance and justification of the right to rule by relevant communities), and fairness (which ... may include notions of accountability, representation, and responsibility, as well as distributive justice).'*¹⁷

Robert Joseph, in a paper comparing Māori and Pākehā governance structures, notes that governance is *'the process through which institutions, businesses and citizens articulate their interests, exercise their rights and obligations and mediate their differences ... Governance methods include structures, processes, norms, traditions and institutions, and their application by group members and other interested parties'*.¹⁸

According to Joseph, *'Governance is not synonymous with government'*.¹⁹ It is a much broader term *'which concentrates on state actions versus society and market ... Governance looks at steering and self-regulation on both sides, public and private'*.²⁰ Joseph notes that a confusion between the two terms has led to policy issues being identified as a problem of government and thus limiting possible resolution. Joseph notes that *'fundamentally, governance is about power, relationships and accountability – who has influence, who decides and how decision-makers are held accountable'*.²¹ These definitions build a basis for what 'governance' refers to in the context of this review.

2.3 Collaborative governance

Natural resource governance lends itself to collaborative approaches in recognition that *'dealing with wicked problems is – to a large extent – a problem of interaction'*.²² Natural resource governance is influenced by the discourse of sustainability, which has an explicit ethical foundation in notions of participation, responsibility, stewardship and duty of care and which makes novel demands on institutions and policy.²³ As a result, governance has taken on a number of features distinct from conventional government. Key among these is an increase in interdependencies among a wide range of actors, necessitating greater interaction between actors from different locations at multiple governance scales. Figure 2 sets out a set of criteria for collaborative governance developed by Ansell and Gash.

In many cases of natural resource governance, local government and central government agencies work with resource users collaboratively. Ansell and Gash define collaborative governance as *'a governing arrangement where one or more public agencies directly engage non-state stakeholders in a collective decision-making process that is formal, consensus orientated and deliberative and that aims to make or implement public policy or manage public programs or assets'*.²⁴

1. The forum is initiated by public agencies or institutions.
2. Participants in the forum include non-state actors.
3. Participants engage directly in decision-making and are not merely 'consulted' by public agencies.
4. The forum is organised and meets collectively.
5. The forum aims to make decisions by consensus (even if consensus is not achieved in practice).
6. The focus is on public policy or public management.

Figure 2: Criteria for collaborative governance²⁵

Collaborative governance is therefore a type of natural resource governance in which public and private actors work collectively in distinct ways, using particular processes, to establish laws and rules for the provision of public goods.

2.4 Good governance principles

Numerous authors have attempted to posit a set of principles to guide the 'good governance' of natural resources. In a paper exploring governance principles for natural resource management, Lockwood et al²⁶ present a suite of principles developed in an Australian context. The principles were developed through suggestions from an expert panel, considering principles identified in the literature and then refining and testing the draft principles with assistance of 13 natural resource management authorities. The literature included codes from the World Bank, the United Nations Development Programme and the European Commission, as well as Ostrom's eight design principles and the Lisbon Principles. The Lisbon Principles were developed in 1997 by a group of experts for the sustainable governance of marine and coastal resources.

Lockwood et al suggest the principles should be used to design natural resource governance arrangements that are legitimate, transparent, accountable, inclusive, fair and that also exhibit functional and structural integration, capability and adaptability. The eight principles are presented in Figure 3 and described below, with other literature incorporated to help to explain each principle.

PRINCIPLE	DEFINITION
Legitimacy	• The validity of an organisation's authority to govern that may be (a) conferred by democratic statute; or (b) earned through the acceptance by stakeholders of an organisation's authority to govern • The extent to which power has been devolved to the lowest level at which it can be effectively exercised • The integrity with which authority is exercised
Transparency	• Visibility of decision-making processes • The clarity with which the reasoning behind decisions is communicated • The ready availability of relevant information about governance and performance in an organisation
Accountability	• Allocation and acceptance of responsibility for decisions and actions • The demonstration of whether and how these responsibilities have been met
Inclusiveness	• Opportunities available for stakeholders to participate in and influence decision-making processes and actions
Fairness	• Respect and attention given to stakeholders' views • Consistency and absence of personal bias in decision-making • Consideration given to distribution of costs and benefits resulting from decisions
Integration	• The connection between, and coordination across, different governance levels • The connection between, and coordination across, organisations at the same level of governance • The alignment of priorities, plans and activities across governance organisations
Capability	• The systems, plans, resources, skills, leadership, knowledge and experiences that enable organisations, and the individuals who direct, manage and work for them, to effectively deliver on their responsibilities
Adaptability	• The incorporation of new knowledge and learning into decision-making and implementation • Anticipation and management of threats, opportunities and associated risks • Systematic reflection on individual, organisational and system performance.

Figure 3: Principles of natural resource governance²⁷

Legitimacy

Legitimacy refers to the acceptance and justification of the right to rule by relevant communities. Provided those affected by a decision consider that the governance arrangement should have the power to make the decision, both the governance process and outputs will be sufficiently legitimate.

In liberal democratic systems, legitimacy is conferred by democratic representation. Governments are typically legitimised through democratic processes and their decisions are given weight by legislation and other forms of regulation and policy. Sometimes, local governments have democratic authority indirectly conferred on them through legislation enacted by higher tiers of government. Governance involves the transfer of powers from central government to lower level actors and institutions appointed from private as well as public interests. Scholars recognise groups have different incentives to participate in governance arrangements, depending on their relative power in the arrangement. Parties that believe their power is on the rise will not necessarily want to bind themselves to one particular avenue, and less organised yet affected others can easily be excluded from the arrangement. Given that appointees to governance boards are not democratically elected and may have doubtful democratic credentials, some commentators suggest existing democratically based institutional arrangements are more prudent for natural resource governance.

Alternatively, governance arrangements may earn legitimacy through their efforts at leadership, through effectiveness at producing outcomes or by generating consensus around a vision. Many cases of governance begin at the point when stakeholders begin to recognise their past antagonisms



have caused more trouble than they are worth. Genuine dialogue with stakeholders, including allowing stakeholders to exert substantive influence on decision-making that affects their welfare, will help to foster legitimacy.

Legitimacy also requires members to be respected by the stakeholders, have relevant expertise and have the authority to make decisions. They must exercise their authority with integrity, declare conflicts of interest, not seek to manipulate outcomes to their personal advantage and behave honestly. Trust is fundamental to virtually all social interactions. In the case of governance, trust refers to the level of confidence in the other party to act in ways that meets expectations.

The power of the governance arrangement should be proportionate to the responsibilities held, in accordance with the subsidiarity principle. The tasks should be undertaken at the least centralised level with the capacity to satisfactorily complete them in an efficient manner, as well as at the level that represents all the actors with an interest in the task. Governance requires the encouragement of democratic and mutually supportive central and local government.

Transparency

Transparency allows those who are affected by the decisions of the governance arrangement to understand how, why and who made those decisions. For example, any stakeholder should be able to know whether the decision was made according to the authority conferred on the governance arrangement; according to a majority rule or consensus; and on the basis of expert opinion, professional judgement or formal decision aids like cost-benefit analysis.

For it to be accessible, some stakeholders will require information to be available in different forms. For example, materials may need to be available in te reo Māori and English, some people may prefer to attend a meeting rather than read a publication, and some may prefer to access information via verbal communication rather than in written form.

Accountability

Accountability may be upwards (to higher level authorities), horizontal (to authorities on the same level) and/or downwards (to resource users and other community members). Forms of accountability vary in strength and frequency, and the capacity of those holding structures to account will vary. In overseas contexts, evidence suggests accountability tends to be a one-way affair, upwards to national governments with limited accountability to local and regional communities and laterally to partners.

Where accountability is unrealisable through direct democratic involvement and is more informal, citizens need proper access to information, meaningful consultation and enhanced opportunities for active participation. There should be recognition that accountability extends horizontally and downwards as well as upwards.

Governance arrangements should also demonstrate that the allocated responsibilities are met and that regulatory requirements are complied with, for example through observing relevant legislation, standards, codes and systems.

Inclusiveness

Diverse stakeholder input helps ensure better solutions to complex problems, more innovation, and the effectiveness and relevance of decisions. For a governance arrangement to be inclusive, all those with a stake in the governance process must be able to engage on an equal basis to all other stakeholders. Solutions to 'wicked' problems demand substantial changes in practices and their acceptance and



Okupu, Aotea-Great Barrier Island

implementation requires participation of as many of the affected actors as possible. The governance arrangement should have access to many different perspectives and kinds of knowledge with input drawn from multiple sources. Awareness of diversity and its value is important. Resources should be provided to overcome barriers to participation (such as childcare at meetings, timing consultation to suit stakeholders needs, and using media appropriate to cultural and learning preferences).

Inclusiveness should also be practised in the design of the governance arrangement itself. For example, if the reform process is seeking to decentralise governance, the 'top-down' imposition of institutional structure should be avoided. Instead a collaborative approach involving all current and potential governing actors can be adopted with the composition of the group reflecting the diversity of stakeholders. Inclusiveness also implies that key stakeholders are engaged through targeted participation and by maintaining ongoing dialogue.

Fairness

Those charged with advancing governance arrangements are expected to be fair and equitable in the exercise of their authority. They are responsible for the distribution of power, the treatment of participants, recognition of diverse values, consideration of current and future generations, and the development of mechanisms to share costs, benefits and responsibilities of decision-making and action.

Addressing complex natural resource problems is difficult as there is often confusion over who should be responsible. It is important to ensure roles and responsibilities do not fall unfairly on particular actors. Fairness also implies consideration of intergenerational equity and practices founded on stewardship of resources. Meeting strategic priorities may mean that actions and investments are not spread evenly across an area concerned. However, a fair governance arrangement will ensure that decisions and resource allocations are not systematically biased in favour of any particular individual or sector.

Integration

In recognition of the interconnected nature of 'wicked' problems, natural resource governance requires connectivity between different scales of government, different policy sectors and different regions. Such connectivity encourages a shared recognition of the interdependencies among people and issues and allows actors to effectively address shared problems, without duplicating effort and resources. Governance arrangements need to link formal and informal processes both vertically and horizontally. To ensure consistency in objectives and implementation of policy and management instruments across different entities, governance arrangements should:

- Generate a long-term vision with short- to medium-term measurable objectives
- Have a strategic direction that is vertically consistent with arrangements at other governmental levels
- Have policy and management instruments horizontally consistent across organisations and sectors
- Be suited to the particularities of local conditions

Capability

Effective implementation is influenced by leadership, skills and competence of staff as well as the adequacy of funding. Knowledge and its management are key components of developing solutions to 'wicked' problems. Solutions need to be informed by a broad range of knowledge sources including scientific research, on-ground experience and traditional ecological knowledge. Free-flowing

information, together with effective communication, can help stimulate the creativity and flexibility necessary to respond to new situations.

The capacity of governance arrangements to deliver effective outcomes is often compromised by insufficient financial support. Where public good outcomes are involved, central governments have a role to play in ensuring substantial, long-term investment in addition to resources that the private sector may contribute.



Mansion House Bay, Kawau Island

Adaptability

Adaptability demands that internal processes and procedures can adapt to changing internal and external conditions. The arrangement should have processes to assimilate new information, to learn from experience, and to test the reliability of its assumptions. An arrangement that is strategic, anticipatory, forward-looking and innovative in approach is in a better position to read the external environment, reduce unexpected outcomes and surprises, respond to and cope with change, demonstrate foresight and adapt to changing community needs.

Adaptable arrangements have procedures to identify, assess and manage risks. They take seriously the importance of systematic self-reflection on their procedures, processes and performance through such means as monitoring, evaluation and review. They also have processes for making better decisions and changes as a result of review outcomes and for feeding new information back into their plans and targets.

Overall, designing these eight attributes into new governance structures should help support more effective governance of natural resources.



Te Mata

3 INTERNATIONAL NATURAL RESOURCE GOVERNANCE



Awana, Aotea-Great Barrier Island

In order to gain a better understanding of how collaborative governance entities operate internationally, we undertook in-depth studies of several such entities. Prospective case studies were identified through a web-based search of collaborative governance natural resource structures. Three case studies were selected for further investigation: the West Coast Aquatic Governance Board (Canada), the Sussex Inshore Fisheries and Conservation Authority (England) and the Great Barrier Reef Marine Park Authority (Australia). These entities were selected because they incorporate central government, local authorities and stakeholders to differing degrees. Each entity is also concerned with governance of the marine area. Governance information regarding the entities was gathered from their establishing legislation and respective websites and is described below and summarised in Figure 4.

3.1 West Coast Aquatic Governance Board

Under the federal Oceans Act 1997, the Canadian Minister of Fisheries and Oceans is tasked with working in collaboration with other ministers, agencies, provincial and territorial governments and aboriginal organisations to develop integrated management plans for the coastal and marine environment.²⁸ In 2001, the West Coast Aquatic Governance Board was the first integrated body recognised under the Oceans Act. The Board began as a grassroots initiative by commercial, recreational and customary fisheries in order to dissipate conflict over resources in the West Coast Vancouver Island area.

The area managed stretches approximately 300 kilometres from Brooks Peninsula northwest of Kyuquot Sound to southeast of Sheringham Point in on the West Coast of Canada, and out to the 200 nautical mile limit of the exclusive economic zone. The geographic scope reflects the territorial wealth of fifteen Nuu-chah-nulth Nations. The area is a unique and rich marine ecosystem that is valuable to residents, Canadians, and the international community as a whole. It provides food, energy, money, water, culture, tourism, recreation, commercial fisheries, transportation routes and knowledge.

The Board brought together coastal communities and others involved in aquatic resource management to work with government in order to integrate management of aquatic resources in the area.²⁹ The Terms of Reference define integrated aquatic resource management as *'an ongoing and collaborative approach that brings together affected interests to incorporate social, cultural and economic values to foster sustainable development while maintaining or enhancing aquatic ecosystems'*. Initially it was difficult to bring local, provincial and federal government members to the table. However, following a landmark case commonly referred to as the 'War of the Woods', which initiated co-management of forestry between the Crown and indigenous people, the Board was perceived to be an interim measure for the marine equivalent. The co-management structure never materialised and the Board remains as it was originally constituted. The Board has 18 members:³⁰

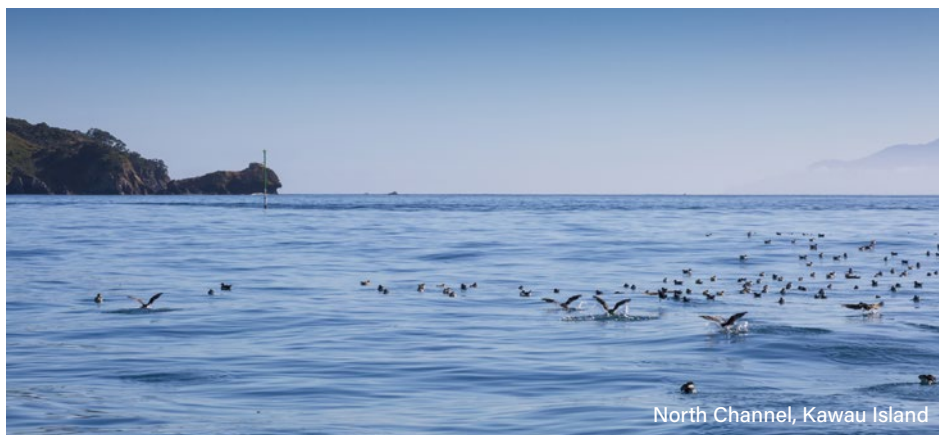
- Two members appointed by the Government of Canada
- Two members appointed by the Province of British Columbia
- Two members appointed by Nuu-chah-nulth Nations
- Two members appointed by the regional districts
- Ten community representative members jointly appointed by the governments from nominations solicited from coastal communities and other persons and bodies affected by aquatic resource management in the area

Community members are generally representative of the diverse geography and range of interests in the marine area including commercial, aboriginal and recreational harvesting, processing, environment, aquaculture, tourism, forestry and marine transportation.³¹ Initial community representative appointments are for three years. The Board appoints a chairperson or co-chairs from among its own members.³²

With changes in the federal government, there have been fluctuations in commitment to the Board, which has often been dependent on the dedication of the individuals selected from the responsible Ministry. For example, the current representative from Parks and Recreation has been more active on the Board than the member from the Department of Fisheries and Oceans.

The Board has a vision that *'the aquatic resources of WCVI [West Coast Vancouver Island] are managed by people working together for the benefit of current and future generations of aquatic resources, people and communities'*.³³ The Board was required to lead, develop and implement a strategy to integrate management of aquatic ecosystems in a way that would:³⁴

- Protect, maintain and rehabilitate aquatic resources
- Manage aquatic resources on an ecosystem basis
- Respect and protect First Nations' food, social and ceremonial requirements and treaty obligations
- Support a precautionary approach to aquatic resource management
- Consolidate information relating to different aquatic resource uses and utilisation to provide a holistic picture of the health of ecosystems within the management area
- Integrate expertise and knowledge from First Nations, local, scientific, and other sources
- Ensure opportunities for coastal communities and other persons and bodies affected by aquatic resource management to participate in all aspects of integrated management, protection and restoration of aquatic resources
- Foster initiatives that maintain or enhance opportunities for coastal communities to access and benefit from local aquatic resources, while achieving sustainable social, cultural, and economic benefits from the integrated management and harvesting of aquatic resources for British Columbians and other Canadians.



North Channel, Kawau Island

In 2012, after 11 years of development, the Board produced the *Coastal Strategy for the West Coast Vancouver Island*. The strategy includes a shared set of values to guide actions and decisions, a vision, goals and objectives, priority action areas, a shared knowledge base and decision-support tools and models.³⁵ A major piece of work coming out of the strategy is the *Marine Ecosystem Reference Guide*, which was launched in early 2018. The Guide was intended to be a marine spatial plan but is now a decision-support tool. This is because the Board was unable to reach consensus on approving the plan and implementing it as a whole. During the final stages of the process, indigenous members and sectors started to push back, fearing lost autonomy and increased regulation. The Guide contains over 200 layers of scientific, traditional and local knowledge in an interactive format that can be used to proactively assess conflicts and compatibilities between values and uses in the marine environment.

The Board participates in ongoing discussions and forums related to the Pacific Salmon Treaty. This was signed by the United States and Canada in 1985, with the two parties agreeing to cooperate in the management, research and enhancement of the Pacific salmon stocks of mutual concern. The Board is also part of an Advisory Committee tasked with providing advice on a social, economic, cultural and ecological assessment of the Pacific Offshore Area of Interest, which has been approved as a potential marine protected area under the Oceans Act.

The Board can enter into agreements to undertake activities on behalf of governments and establish working arrangements with other agencies. It can work with policy and planning processes in order to reduce duplication and facilitate better decision-making. The Board convenes management committees to address particular issues or to perform specific tasks to promote the integrated management of the area.



Huruhi Harbour, Ahuahu-Great Mercury Island

One of the principles of the Board is 'shared responsibility', which means that the governments, coastal communities and other persons and bodies affected by aquatic resource use are jointly responsible and accountable for the integrated management of the area.³⁶ The Board works cooperatively through 'shared decision-making' processes to achieve its objectives and responsibilities. Shared decision-making means that on a certain set of issues, and for a defined period of time, those with authority to make a decision and those who will be affected by that decision will jointly seek an outcome that accommodates the interests of all concerned.³⁷

The Board makes decisions by consensus which means that members may not agree with every aspect, but, taken as a whole, a decision based on consensus satisfies the major interests and concerns of the members to the extent that all can support it. The consensus rule means that the number of members representing each interest is not so important as each member's perspective is equally valid. The outcome of the decision-making process is a recommendation to the appropriate local authority. Shared decision-making does not fetter the discretion or affect the legal authority of the participating governments, and the Board is subject to the final decision-making authority of the Minister. The Board would like to have regulatory powers, but there is no indication that this will happen in the future.

The Board is supported by an administrative secretariat and a facilitator. The facilitator is neutral and this helps to strengthen trust and confidence in the Board by independently negotiating conflicts and directing meetings. The Board has a website which provides information about the governance of the Board and integrated management of the area.³⁸ The participating governments resource the Board's administrative costs and core activities according to a three-year business plan prepared by the Board and approved by the governments. The Board also seeks external programme funding and partnerships to support programme implementation and delivery. It evaluates its performance annually with the goal of continual improvement.

Strengths

- The Board is inclusive with members from government, indigenous communities and community representatives. Mixed membership means that a broader range of skills and knowledge are utilised in decision-making, which has the potential to enhance the quality of the decisions made.
- Over half of the Board are community representatives. This means a higher proportion of those who are directly affected by the decision-making are able to be involved in discussions, fostering the legitimacy of the Board.
- A key principle of the Board is flexibility, which allows the Board to respond to new challenges and show foresight.

Weaknesses

- The Board has a large number of members, which allows for a diverse range of opinions and viewpoints to be heard but can also hinder efficiency.
- The functions of the Board have changed significantly since it was first established. Whilst the Board is adaptable, the future of the Board is unclear and this affects its ability to effectively integrate with other agencies.
- The Board is only able to provide recommendations to the appropriate Minister. The Board's work was intended to be delivered as an integrated whole, but the Minister is able to support aspects of its plan and ignore others. This has likely negatively influenced the opinions of stakeholders and prevented the vision, goals and objectives of the Board from being achieved.

Lessons

- The Board is made up of one member per interest group and has two members from each government entity and indigenous communities. The consensus rule, strictly speaking, means only one member of each interest is required, as each member has an equal opportunity to present their ideas, and the decision of the group as a whole tracks the path forward. However, this approach puts a high demand on the capacity of each individual. It may be prudent to share the load and have more than one representative or alternates. Secondly, the way certain interests are defined is critical. For example, a fishing interest could broadly be 'fishing' or 'commercial fishing' or 'recreational fishing', or even more narrowly as 'crayfishermen', 'longliners', 'processors', etc.
- The Board created a marine plan but was not able to finalise and implement it because at the final stages its members could not agree on the plan. Any new governance arrangement should be wary of the consensus decision-making rule preventing a final outcome being reached. In addition, consensus decision-making can be time and resource intensive.
- The nature of the Board's work changed after the marine plan process was complete and it moved into a facilitative role for the Salmon Roundtables. This indicates that if there is no statutory basis for a governance model, it may lose momentum and relevance.
- The Board is predominantly made up of members of the local community who develop 'bottom-up' recommendations. This empowers the community to do things their own way. Involving people in decisions about matters that directly affect them is a principle of successful self-governance that the Board has reinforced.
- The facilitator fostered trust and confidence in the Board. Facilitators assist fairness and capability by providing leadership and controlling the content and process of the meetings. Facilitators are substantially neutral and have no decision-making authority and so can help a group improve the way it identifies and solves problems and makes decisions.



Harataonga, Aotea-Great Barrier Island

3.2 Sussex Inshore Fisheries and Conservation Authority

The Marine and Coastal Access Act 2009 established 10 inshore fisheries districts and authorities, as well as the national Marine Management Organisation (MMO), in order to manage United Kingdom's marine area. The inshore fisheries authorities manage fishing activity within their districts, balancing the social and economic benefits of exploiting resources with the need to protect the marine environment. They are also expected to participate in marine spatial planning processes.³⁹ The creation of the authorities embedded the government's support for localism.

The Sussex Inshore Fisheries and Conservation Authority was established in 2010 under the Sussex Inshore Fisheries and Conservation Order 2010. It is responsible for the Sussex inshore fisheries district, which covers the combined areas of the West Sussex County Council, East Sussex County Council and Brighton Hove City Council and the adjacent area of sea out to 6 nautical miles. The Sussex inshore marine environment has a diversity of habitats supporting a wide range of marine species, resulting in rich inshore fishing grounds. There are over 300 fishing boats that land into Sussex ports each year, and in 2015 some 3,700 tonnes of whelk, lobster, crab and cuttlefish were landed.

The Authority consists of 21 members:⁴⁰

- Seven are elected members of the relevant councils (three from West Sussex County Council, three from East Sussex County Council and one from Brighton Hove City Council).
- Eleven are individuals representing commercial, recreational and environmental interests appointed by the MMO in accordance with its guidance.
- One is an employee of the MMO.
- One is appointed by the Environmental Agency
- One is appointed by Natural England.

Council members are politicians accountable to their constituents, who often know the local fishing community and have expertise in marine environmental matters. General members (from the MMO, Environment Agency and Natural England) are appointed on merit, through open competition and for a fixed term. They are subject to an annual performance appraisal. The Authority appoints a chairperson from among its own members.

The members are expected to work collegially and not represent constituencies or interest groups. Their task is to manage local fisheries for the wider social benefit. When the government disestablished sea fisheries committees in favour of inshore fisheries authorities, it made a conscious decision to include local authorities and those with local expertise in the fishing environment on the new bodies. Local membership helps ensure that communities are engaged and involved in managing the area. The government also wanted to ensure that the authorities' decision-making was balanced and no one sector could dominate. It is currently considering whether there should be a maximum size for an authority and more prescriptive guidance. Up until now, the number of members in each authority has been determined by the MMO and local authorities. They determine the 'right balance' of membership for each individual district based on their economic, social and environmental needs.

The vision of the Authority is to *'lead, champion and manage a sustainable marine environment and inshore fisheries, by successfully securing the right balance between social, environmental and economic benefits to ensure healthy seas, sustainable fisheries and a viable industry'*.⁴¹ It has bylaw-making and enforcement powers to help achieve this. In carrying out its functions it must:⁴²

- Seek to ensure that the exploitation of sea fisheries resources is carried out in a sustainable way
- Seek to balance the social and economic benefits of exploiting fisheries with the need to protect the marine environment from, or promote its recovery from, the effects of such exploitation
- Take any other steps which in the Authority's opinion are necessary or expedient for the purpose of making a contribution to the achievement of sustainable development
- Seek to balance the different needs of persons engaged in the exploitation of sea fisheries resources in the district
- Seek to ensure that the conservation objectives of any marine conservation zones in the district are furthered

In 2013, the Authority designated three marine conservation zones and since then it has worked on protecting them from damaging fishing practices. It has also developed numerous fisheries bylaws. The bylaws, together with EU regulations, are enforced by warranted officers. The Authority has vessels to carry out marine patrols and boarding of vessels at sea. Officers can enter and inspect premises, vehicles and vessels, and they can seize fishing gear.

The Authority bases its decisions on evidence and takes appropriate expert advice. It is for this reason that Natural England, the Environment Agency and the MMO each nominate an Authority member. The Secretary of State holds the Authority to account and can override any decisions it makes. The Secretary of State also provides guidance on how the Authority should carry out its duties. In return, the Authority must provide the Secretary with information on fish stocks, the effect of fishing and impacts on the marine environment.

To aid governance, a number of subcommittees have been established to oversee specific delegated elements of the Authority's work, including finance, compliance and technical matters. It has established national and local memoranda of understanding with key organisations including the MMO, Environment Agency, Natural England, and the Centre for Environment, Fisheries and Aquaculture Science. These memoranda are supported by a series of national and local partnership groups that meet regularly throughout the year.

The Authority has a website which provides information about itself and fisheries and conservation management of the district. This includes information regarding bylaws and current consultations on management sites as well as learning resources and publications.⁴³ It employs 10 full-time and two part-time staff members and draws on a number of student placements and volunteers. Employees hold a range of qualifications, skills and career experience in the areas of commercial fishing, environmental consultancy, policing and enforcement. The Authority is funded by a levy charged to the member councils who have a legal duty to pay it. Some additional revenue is generated from fees charged for permits and sampling work. Recovered court costs awarded from successful prosecutions also provide income.

Strengths

- The Authority is made up of members from local government, government authorities and local experts from a range of sectors. It therefore has a balanced top-down and bottom-up approach. Decisions are based on evidence provided by government agencies and members have extensive local knowledge of the area, which enhances the decision-making process.
- It is a permanent joint council committee with a clear mandate and a steady stream of funding.

- It has a number of subcommittees to allow it to carry out its functions. These focus on finance, compliance and technical matters and are not involved in decision-making.
- It is well integrated with other agencies and has the appropriate power to carry out its role in the marine area.
- Council members are accountable to the local constituents and general members are subject to performance appraisals by the MMO.

Weaknesses

- The large membership can impede the efficiency of the Authority.
- Member turnover is high and the reasons for this are not clear.

Lessons

- The Authority is made up of some members from previous fishing committees, which helps to retain institutional knowledge.
- A statutory foundation and strong national guidance ensures the permanence and direction of the Authority.
- The Authority currently has 21 members and is reviewing the maximum number of members it will involve. There is a limit to the number of people that can be included in an effective governance body.
- Establishing subcommittees with advisory powers helps increase the capability of the Authority without compromising legitimacy.



Point Chevalier Beach

3.3 Great Barrier Reef Marine Park Authority

The Great Barrier Reef Marine Park Authority was established in 1975 under the federal Great Barrier Reef Marine Park Act 1975 to manage the Great Barrier Reef Marine Park in Australia. The Marine Park covers a very large marine area, encompassing 345,400km², which is five times the size of Tasmania. It extends nearly 2000 kilometres along the coast and includes around 2900 individual reefs, 900 islands and cays, and many other interconnected marine habitats including seagrasses, mangroves, shallow muddy inshore waters and deep offshore areas. The Marine Park is a World Heritage Area and is recognised internationally for its outstanding universal value. It is critical to the cultural, economic and social wellbeing of the more than 1 million people who live in its catchments.⁴⁴ The Marine Park helps to conserve the reef's environment while supporting a wide range of activities including tourism, fishing, recreation, traditional use, research, defence, shipping and ports. The reef environment helps bring billions of dollars to Australia's economy each year and supports almost 70,000 jobs.⁴⁵

According to the legislation, the Authority must be made up of at least three, but no more than five, members:⁴⁶

- One member must have a qualification or extensive experience in a field related to the functions of the Authority
- One member must be an indigenous person with knowledge of indigenous issues relating to the Marine Park
- One member must have knowledge or experience in the tourism industry associated with the Marine Park

In practice, the Authority is composed entirely of experts:

- The current chairperson has extensive executive experience and a doctorate in marine science.
- The indigenous representative is actively involved in community natural resource management projects and is a member of the Indigenous Advisory Committee.
- The tourism member has extensive senior managerial experience in the Queensland marine tourism industry.
- The fourth member used to be the Secretary of Transport for New South Wales, after a long career in local government, and is now the appointed Director-General of the Department of the Premier and the Cabinet.
- The final member is a professor of marine ecology and ecotoxicology.

The members of the Authority are appointed by the Minister for the Environment and Energy for a term of five years. Members must ensure the efficient and effective performance of the legislative functions of the Authority, consistent with the federal government's expectations. Any questions arising at the meeting are determined by a majority of votes.⁴⁷

A chairperson employed by the Authority full time also acts as the chief executive officer. An independent review of the governance of the Marine Park, carried out in 2017, suggested that the position of chairperson and chief executive officer should be separated. The review also suggested that an additional member should be accommodated to help tackle future challenges for the Marine Park.⁴⁸

The vision for the Authority is a healthy Great Barrier Reef for future generations.⁴⁹ It is managed in accordance with ecosystem-based management principles. The Authority is the primary environmental regulator for the Marine Park. The functions of the Authority are to:⁵⁰

- Make recommendations to the Minister on the control, care and development of the Marine Park including areas that should be declared to be parts of the Marine Park and regulations that should be made under the Act
- Carry out by itself, or in cooperation with other research and investigations relevant to the Marine Park
- Prepare zoning plans and management plans for the Marine Park
- Undertake permitting, monitoring, compliance and enforcement
- Provide information and advice on agreements relating to the Marine Park
- Receive and disburse money for the purposes of the Marine Park
- Provide and arrange the provision of educational, advisory and informational services relating to the Marine Park

The Authority only has recommendatory power to the federal Minister for the Environment and Energy for areas that should be declared parts of the Marine Park and for regulation-making. Zoning and management plans do not require approval from the Minister and nor does permitting and enforcement. Many Australian and Queensland government agencies have responsibilities within the region, and the Authority works in close collaboration with these agencies in carrying out its functions. The Authority also maintains numerous partnership agreements, runs stewardship programmes and commissions research, although more needs to be done to integrate and align this work with the Authority's purpose.⁵¹



The Authority appoints stakeholders to Reef Advisory Committees. These committees advise the Authority on actions that can be taken to address the risks to the Marine Park. Members are appointed as a representative of a particular group or sector (e.g., industry, recreation or government) or for their linkages to traditional owner groups along the Great Barrier Reef catchment area. The committees meet two to three times a year and produce a report after each meeting. Each member is appointed for three years.

The Authority consults the public on a range of matters including draft policies, permits applications and proposed developments. The Authority has a website which provides information about the governance and management of the Marine Park. It provides a summary of decisions made at each meeting and all the documents the Authority holds.⁵²

The Authority and its initiatives are funded through numerous avenues. In 2016, the Authority received funding from central government and related entities (e.g., the National Landcare Programme and Reef Trust) as well as through litigation settlements.

The Marine Park is widely recognised as one of the best managed marine protected areas in the world and the Authority has strong stakeholder support. However, a recent strategic assessment report suggests the Authority is under 'considerable stress' due to the impact of severe biophysical stresses and institutional responses over the last decade. The report suggests the Authority should adopt a more comprehensive outcomes-based, target-driven management approach. Management targets should be specific, measurable, achievable, relevant and time-bound. An integrated region-wide monitoring and reporting programme should evaluate the performance against targets and guide adaptive management. The Authority was also advised to maintain its solid management foundation at a reef-wide scale, continuing to implement regulations, zoning and permits that apply to all users in all areas. It also needs to adopt a stronger precautionary approach.⁵³

Strengths

- The Authority has a small membership which makes for efficient decision-making.
- It is made up of high calibre experts with particular knowledge of the Marine Park. Knowledge is a key component to develop solutions to 'wicked' problems.
- It has very strong support and goodwill from its stakeholders.
- It has regulatory powers and is able to create zoning and management plans without ministerial approval.

Weaknesses

- The Authority is accountable to federal government, and it works collaboratively with state authorities, but shows limited accountability to resource users and local communities.
- The Authority's membership does not include stakeholders or members of the community. However, these groups are able to participate in advisory committees.
- The small number of members of the Authority limits the range of skills it possesses.

Lessons

- Over the past decade, there has been a significant increase in activity by governments, domestic organisations and individuals to address pressures on the Marine Park. The Authority's role to balance conflicting but legitimate interests and issues affecting the Marine

Park has increasingly been shared among more organisations and groups. For example, the *Reef 2050 Long Term Sustainability Plan* led by the Authority and the Australian and Queensland Governments, and the *Reef Water Quality Protection Plan*, a joint commitment of the Australian and Queensland Governments, both have a substantial number of organisations involved in their delivery. As a consequence, there is some confusion as to which organisation is responsible for what actions. The review suggested that the Ministers should issue statements of expectations for the Marine Park including objectives, clarification of relative roles and responsibilities, and coordination of activities.

- The Authority currently has five members. The review suggested the small size and specific background requirements for members of the Authority '*limits the capacity of the Authority to provide local, national and international perspectives and diversity of expertise commensurate with their responsibilities*'. The review also recommended that the Authority should be supplemented with additional positions, skills and expertise, to increase its size to seven members. They should contribute to a 'skills matrix' and be objective.
- Currently, the chairperson is also the chief executive officer, which means the majority of responsibility for the Authority is vested in this position. The review suggests that the two roles should be separated. The chief executive officer must be able to present credibly on the Marine Park. The chairperson should be independent and someone of integrity, national credibility and standing, and not be perceived as representing an interest group. This reinforces the desirability for an independent chairperson.
- Whilst there are Reef Advisory Groups, there is no formal mechanism in place through which the Authority can actively consult or seek advice from stakeholder groups. The review suggests that a stakeholder committee should be established whose purpose would be to provide advice to the Authority on stakeholder perspectives affecting the management of the Marine Park. If the Hauraki Gulf Forum were to adopt a similar model to the Authority, a similar arrangement may be required.
- Four meetings a year is not enough to carry out the functions of the Authority.⁵⁴ The number of meetings should be proportionate to an agency's responsibilities.



Cathedral Cove

	West Coast Aquatic Governance Board
Legitimacy	The Board was established in 2001 by the Minister for Fisheries and Oceans under the Oceans Act 1997 in order to work collaboratively with other ministers, boards, agencies, provincial and territorial governments and affected aboriginal organisations to lead and facilitate the development and implementation of a strategy for the integrated management of aquatic ecosystems in the West Coast Vancouver Island marine area. The West Coast Vancouver Island marine area is within the jurisdiction of four local authorities and 15 tribal territories. The Board consists of 18 members: • 2 members appointed by the Government of Canada • 2 members appointed by the Province of British Columbia • 2 members appointed by Nuu-chah-nulth Nations, as per their governance models • 2 members appointed by the regional districts • 10 community representatives jointly appointed by the governments from nominations solicited from coastal communities and other persons and bodies affected by aquatic resource management in the management area
Functions	The Board must develop and implement an integrated management strategy to: • Protect, maintain and rehabilitate aquatic resources on an ecosystem basis • Respect and protect First Nations' food, social and ceremonial requirements and treaty obligations • Support a precautionary approach to aquatic resource management • Consolidate information to provide a holistic picture of the health of ecosystems • Integrate expertise and knowledge from First Nations, local, scientific, and other sources • Ensure opportunities for coastal communities and other persons and bodies affected by aquatic resource management to participate • Foster initiatives that maintain or enhance opportunities for coastal communities to access and benefit from local aquatic resources whilst retaining broader public benefits

The Sussex Inshore Fisheries and Conservation Authority	Great Barrier Reef Marine Park Authority
This Authority was established in 2010 by the Secretary of State under the Marine and Coastal Access Act 2009 and the Sussex Inshore Fisheries and Conservation Order 2010 to sustainably manage fisheries and protect the marine environment. The Sussex inshore marine area extends across the jurisdiction of three local authorities. The Authority consists of 21 members: • 7 elected members of relevant councils (3 from West Sussex County Council, 3 from East Sussex County Council and 1 from Brighton Hove City Council) • 11 individuals from commercial, recreational and environmental sectors appointed by the MMO in accordance with MMO guidance • 1 employee of the MMO • 1 appointed by the Environmental Agency • 1 appointed by Natural England	The Authority was established in 1975 through the Great Barrier Reef Marine Park Act 1975 to implement a range of policies and programmes, management strategies and legislative measures to provide for the long-term protection, ecologically sustainable use, understanding and enjoyment of the Great Barrier Reef for all Australians and the international community through the care and development of the Great Barrier Reef Marine Park. The Marine Park is a marine World Heritage Area, located off the coast of Queensland. The Authority consists of between 3 and 5 members appointed by the Minister for the Environment and must include: • 1 member with a qualification or extensive experience in a field related to the functions of the Authority • 1 member who is an indigenous person with knowledge of indigenous issues relating to the Marine Park • 1 member with the knowledge or experience in the tourism industry associated with the Marine Park
The Authority must manage the exploitation of fisheries within its district. In doing so it must: • Seek to ensure that the fisheries is carried out in a sustainable way • Seek to balance the social and economic benefits of exploiting fisheries with the need to protect the marine environment from, or promote its recovery from, the effects of such exploitation • Take any other steps which in the Authority's opinion are necessary or expedient for the purpose of making a contribution to the achievement of sustainable development • Seek to balance the different needs of persons engaged in the fisheries within the district • Seek to ensure that the conservation objectives of any Marine Conservation Zones in the district are furthered	The Authority: • Makes recommendations to the Minister in relation to the care and development of the Marine Park • Carries out by itself or in cooperation research and investigations relevant to the Marine Park • Prepares zoning plans and management plans for the Marine Park • Undertakes permitting, monitoring, compliance and enforcement • Provides information and advice on agreements relating to the Marine Park • Receives and disburses money for the purposes of the Marine Park • Provides and arranges the provision of educational, advisory and informational services relating to the Marine Park

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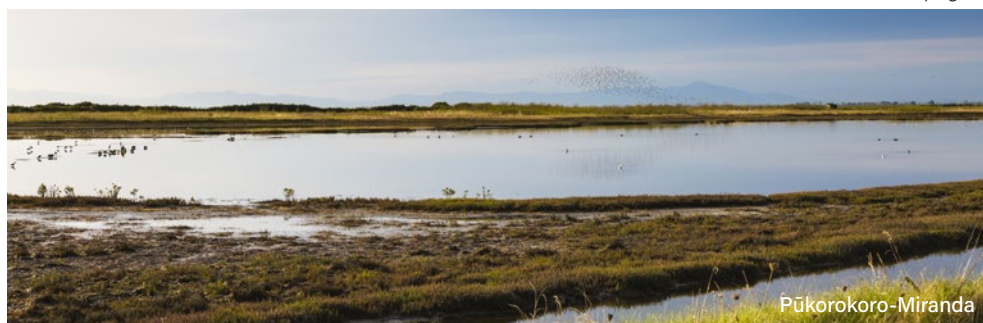
	West Coast Aquatic Governance Board
Transparency	The Board's website provides summaries of each Board meeting and makes it clear when the next meeting is and where. It also highlights current issues the Board is facing. The Board members' names and who they are representing are visible and their contact information is provided. The website presents the Board's work, a marine ecosystem guide, and the strategy for the West Coast Vancouver Island marine area.
Accountability	The Board makes management recommendations to the appropriate local authorities whose legal authority is not fettered. Any decision of the Board is subject to the final decision making power of the Minister.
Inclusiveness	The Board's Terms of Reference include principles of inclusivity and adaptive management. Members are appointed on the basis of commitment to the Board's vision, purpose, principles and objectives. They must also have the appropriate skills, knowledge and experience relating to aquatic management. NGO members are representative of the diverse geography and range of aquatic resource interests in the management area, which include commercial/ recreational and customary harvesting, aquaculture, environment, tourism, labour, forestry and transport.
Fairness	Shared decision-making is practised to accommodate the interests of all concerned. Decisions are made by consensus. The Board appoints a chairperson or co-chairs from among its members.



Cape Colville

The Sussex Inshore Fisheries and Conservation Authority	Great Barrier Reef Marine Park Authority
The Authority's website does not make minutes or details of the meetings publicly available. It provides information regarding current consultations, research publications, reports and plans, education publications, bylaws, compliance guidelines, partnerships and vessels. The website displays a contact email address.	The Authority's website provides summaries of all the decisions it makes but does not make it clear when and where meetings take place. The biography of each Authority member is displayed. The website provides a wealth of information regarding legislation, regulations and policies, zoning, permits and plans and research.
The Authority is a joint committee of three councils and draws general members as appointed by the MMO, Natural England and the Environment Agency. The Authority must provide relevant statistics and information to the Secretary of State who provides guidance in return. The Secretary of State holds the Authority to account for its decisions and can override any decisions it makes.	The Authority cooperates with authorities and local bodies to make recommendations to the Minister regarding the areas that should be declared parts of the Marine Park and the regulations that should be made under the Act. The Authority has the power to prepare zoning and management plans, as well as undertake permitting and enforcement, without Ministerial approval.
The Authority is partly made up of elected county councillors with leadership and executive skills. In 2017, the individuals appointed to the Authority in accordance with MMO guidance have experience and expertise in recreational sea angling, fisheries management, biodiversity conservation, coastal zone management, commercial fishing, seafood marketing and underwater archaeology. The MMO representative is the district marine officer responsible for the Authority and two other authorities in neighbouring districts. The Nature England representative is a marine technical specialist and the Environment Agency representative is a fisheries technical specialist.	The Authority is composed entirely of experts. In 2017 the Authority was made up of members with expertise in marine science, marine ecology and ecotoxicology, indigenous resource management, the Queensland tourism industry and executive leadership.
The Authority appoints a chairperson from among its members.	The Authority employs a full-time chairperson. Any questions arising at meetings are determined by a majority of votes.

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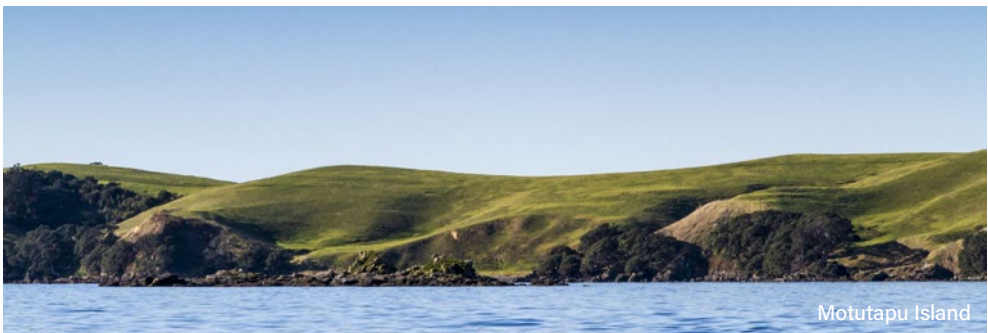
	West Coast Aquatic Governance Board
Integration	The Board: ▪ Has a shared vision to work together for the benefit of current and future generations ▪ Convenes management committees to address particular issues or perform specific tasks ▪ Can enter into agreements to undertake activities on behalf of governments and establish working arrangements with other organisations/agencies ▪ Coordinates its actions with existing policy, management, allocation and planning processes
Capability	The Board is supported by an administrative secretariat and facilitator when required. Administrative and core activities of the Board are funded by local government according to a three-year business plan prepared by the Board and approved by local government.
Adaptability	Government members are appointed by their respective governments for the term of that position and community representatives are appointed for a maximum of three years. The Board's Terms of Reference include the principle of flexibility to reinforce integrated management as a continuous process. The Board evaluates its performance annually with the goal of continuous improvement.

Figure 4: Summary of overseas governance entities



Motukorea Island

The Sussex Inshore Fisheries and Conservation Authority	Great Barrier Reef Marine Park Authority
The Authority: ▪ Contributes to a national level strategy for sustainable development of the marine environment; the strategy's vision is to lead, champion and manage a sustainable marine environment and inshore fisheries ▪ Cooperates with other authorities in adjoining districts ▪ Works jointly with partner organisations across boundaries to contribute to marine spatial planning and other regional and marine policy ▪ Is supported by a number of subcommittees which oversee certain elements of finance, compliance and technical matters	The Authority: ▪ Has a vision for a healthy Great Barrier Reef for future generations ▪ Supports the Great Barrier Reef Intergovernmental Agreement 2015 between the Queensland and Australian governments to promote integration and collaboration in marine and land management ▪ Gives assistance to other people and institutions ▪ Appoints stakeholders to Reef Advisory Committees which advise the Authority on risks to the Marine Park and actions to take ▪ Consults the public and works in partnership with traditional owners, community, industry and scientists
The Authority is funded by the three constituent councils.	The Authority is funded through numerous funding programmes. In 2016, the Authority was predominantly funded through contributions from the federal government and related entities as well as litigation settlements.
The Authority is permanent. The terms of appointment of each member is determined by the body making the appointment.	Each member of the Board is appointed for five years.





Tryphena Harbour, Aotea-Great Barrier Island

4 NEW ZEALAND NATURAL RESOURCE GOVERNANCE



Wharenui, Ōrākei Marae

Building on the review of international thinking and experience in the previous chapters, this chapter now turns to the New Zealand context and reviews natural resource governance in this country. It first considers the Treaty of Waitangi and the impact of Treaty settlements on natural resource governance. It then investigates the design of co-governance natural resource entities currently operating in New Zealand to draw out lessons with application to the Hauraki Gulf.

4.1 The Treaty of Waitangi

New Zealand has a unique way of governing natural resources to reflect the indigenous rights of Māori as set out in the Treaty of Waitangi and many pieces of New Zealand legislation. The Treaty is the founding document of New Zealand and was signed between Māori and the Crown in 1840. The Treaty was first written in English and then translated into Māori for iwi and hapū representatives to sign. The English version 'guaranteed' to Māori full, exclusive and undisturbed possession of their lands, fisheries and all things of significant value. In the Māori version, Te Tiriti o Waitangi speaks of Māori people having te tino rangatiratanga or sovereign authority in respect of their lands, fisheries and all things of significant value. This is a different and wider concept than the English version, which is confined to a property right rather than recognition of the governmental authority of Māori.

The Treaty of Waitangi Act 1975 was the first statute to refer to the 'Treaty principles'. Various institutions such as the Courts, Waitangi Tribunal and Executive have all subsequently commented on these principles. In the late 1980s, a series of important Court of Appeal judgements led by Cooke P outlined what the principles were. In the *New Zealand Maori Council v Attorney General* [1987] 1 NZLR 641, also known as the 'SOE' case, the New Zealand Māori Council asked the Court of Appeal whether the government's plans to transfer land to state-owned enterprises (SOEs) breached the principles of the Treaty. The Court of Appeal characterised the Treaty relationship as 'akin to partnership'. A number of fundamental principles underlying this partnership were identified by the Court:

- A relationship of a fiduciary nature that reflects a partnership imposing the duty to act reasonably, honourably and in good faith
- The honour of the Crown
- Fair and reasonable redress

Māori and the Crown have made considerable use of the guidelines set down by the Court of Appeal's decision in reaching agreements that settle long-standing grievances. The SOE case established standards that provided a foundation intended to enhance the relationship between the two parties. Over the ensuing decades, a range of Treaty principles have been established by the Courts and Waitangi Tribunal. These principles include:

- Government should make informed decisions
- The Crown should remedy past grievances
- Active protection of Māori interests by the Crown
- The Crown has the right to govern
- Māori retain rangatiratanga over their resources and taonga and have all the rights and privileges of citizenship

The Courts and Waitangi Tribunal have emphasised that the principles are not set in stone and that they may change as the Treaty relationship evolves over time. Whilst there has been much debate and angst (particularly political) about the principles of the Treaty, they fundamentally appear to be about respect. It is important to note that in the eyes of many Māori, the Crown has failed to adhere to either version of the Treaty.⁵⁵

The principles of fair and reasonable redress underpin the Treaty settlement process. There are fundamental principles that sit behind the Crown's settlement policies such as fairness, durability, affordability and the requirement that Parliament protect the interests of all New Zealanders. These principles, and the policies that have sprung from them, have endured despite criticisms of some aspects of the Treaty settlement process.

Each Treaty settlement negotiation is unique. An adversarial approach is avoided and each negotiation is tailored to the specific context and purpose. The Crown not only aims to negotiate fair redress but to restore its honour by conducting itself in good faith. This is so the Crown can overcome the mistrust felt by groups entering negotiation and rebuild the Treaty relationship having confronted the wrongdoings of the past.

The process is difficult and complex. The Crown needs to meet its obligation of being fair and equitable to all tribal groups, but at the same time it needs to be flexible enough in its approach in order to provide meaningful redress that meets the specific and unique interests of each group. The process involves '*inevitable and unavoidable frustrations and disappointments*'.⁵⁶



Kennedy Bay

4.2 Co-governance

Treaty settlements have had a strong influence on New Zealand natural resource management over recent years. They have changed the make-up and decision rules of governance structures to reflect the Crown-Iwi partnership. Co-governance arrangements see iwi and the Crown co-operating together in a power-sharing capacity to make important decisions about natural resources and areas. For Māori, the co-governance structure allows them to participate in a form of resource management that they have been locked out of for many generations, in an effort to compensate for historical injustices. For the Crown, these arrangements allow it to devolve decision-making power, while retaining some control.

In co-governance schemes, iwi representatives and Crown agents sit on governance boards to decide the crucial governance visions of the organisation. The agents that act on behalf of the Crown are generally representatives from local, district or regional government. Iwi and Crown membership numbers are equal or close to being equal. Sometimes a central government member oversees meetings and management actions. Some co-governance boards, such as the Waikato River Authority, have powers to request call-ins and appoint commissioners to hearings committees and boards of inquiries under the Resource Management Act 1991 (RMA).

The term 'co-governance' is rarely defined in the New Zealand context and it means different things to different people. It is often used interchangeably with the term 'co-management', and there is no official guidance as to what it means. Sources outside of legislation have at times provided definitions, such as the 2010 *Deed in Relation to Co-governance and Co-management of the Waipa River*, which describes 'co-governance' as setting the primary direction to achieve restoration goals, while 'co-management' is a collaborative partnership that implements the direction under the co-governance framework.⁵⁷

Outside of legislation and Treaty settlements various academics have considered co-governance and co-management in depth. Co-governance has been said to be about the ability to direct, for example to set the policy, procedures and planning framework for work and ensure the work is done.⁵⁸ Co-management has been described as the '*sharing of knowledge, power and responsibility between the government and local resource users*'.⁵⁹ Authors largely agree that there is a continuum of possible co-management schemes providing for different degrees of power sharing. These extend



from information provision and consultation at one end to full partnership, joint decision-making, institutionalisation and delegated power to the community at the other end. The highest levels of co-management empower the community to make decisions over the affected resources or place, in conjunction with government and stakeholders.

In a 2016 review of the operation of eight natural resource co-governance bodies in New Zealand, the Auditor-General proposed five principles to guide their establishment and operation:⁶⁰

- Build and maintain a shared understanding of what everyone is trying to achieve
- Build the structures, processes, and understanding about how people will work together
- Involve people who have the right experience and capability
- Be accountable and transparent about performance, achievements and challenges
- Plan for financial sustainability and adapt as circumstances change

Whilst co-management has similar characteristics to co-governance, such as shared responsibility and decision-making power, co-governance has a connotation of greater authority and power sharing. Co-governance is about directing while co-management focuses on doing, carrying out policies/procedures and implementing strategy.⁶¹ However, at a practical level the terms overlap, and in any one situation there may be elements of both co-governance and co-management present.

For the purposes of this review, co-governance involves the following elements:

- A degree of power sharing between the parties
- An ability to make decisions
- Some responsibility and accountability
- A degree of sharing of management functions
- Sharing of knowledge

Co-governance and co-management schemes are different, but, for the purpose of investigating the positive and negatives of these power-sharing agreements, the literature discussing them has been examined together. Power-sharing agreements have been positively received by some and heavily criticised by others.

Advocates of co-governance say it can:

- Enhance people's rights which leads to more effective governance and management of resources. Some academics see increased Māori decision-making power in resource management as essential, explaining that power-sharing schemes are empowering for Māori who have often been locked out of resource management decisions for the majority of post-Treaty history.⁶²
- Be linked with the rise of decolonisation of public administration. Through co-governance, some power has been removed from the hands of central government and returned to iwi.⁶³
- Be a method of Māori regaining respect for their right as tangata whenua, a recognition that 'they were here first'. Iwi are willing to engage in co-governance systems because it is one way of establishing control over resources that they used to manage traditionally. While it is not the full hand over of control that may be preferred by some iwi, it is one – significant – concession that the central government has been prepared to make.⁶⁴

Co-governance has also been critiqued by indigenous and non-indigenous commentators:

- Some non-indigenous commentators view the system as undemocratic because decisions are made by appointees rather than elected representatives. Opponents to co-governance have argued that Māori should aim to secure more influence through election to local government.⁶⁵
- Others say co-governance is an *'interpretation of case law well beyond what the courts have actually said about the Treaty'*.⁶⁶
- Some indigenous commentators view the system as a compromise. It is argued that co-governance has arisen as a result of the parameters of negotiated settlement that *'change as quickly as the governing political parties'*.⁶⁷
- Scientists have raised concerns over the clash of mainstream science and tikanga Māori.
- Co-governance was found to be a *'far from successful means to empower local indigenous communities and to promote sustainable practises'*.⁶⁸

It is evident that while co-governance is aspirational and generally well received by Māori, the system is not perfect. This reflects the diverse and evolving nature of Treaty relationships, and the ongoing development of law and policy in this area.

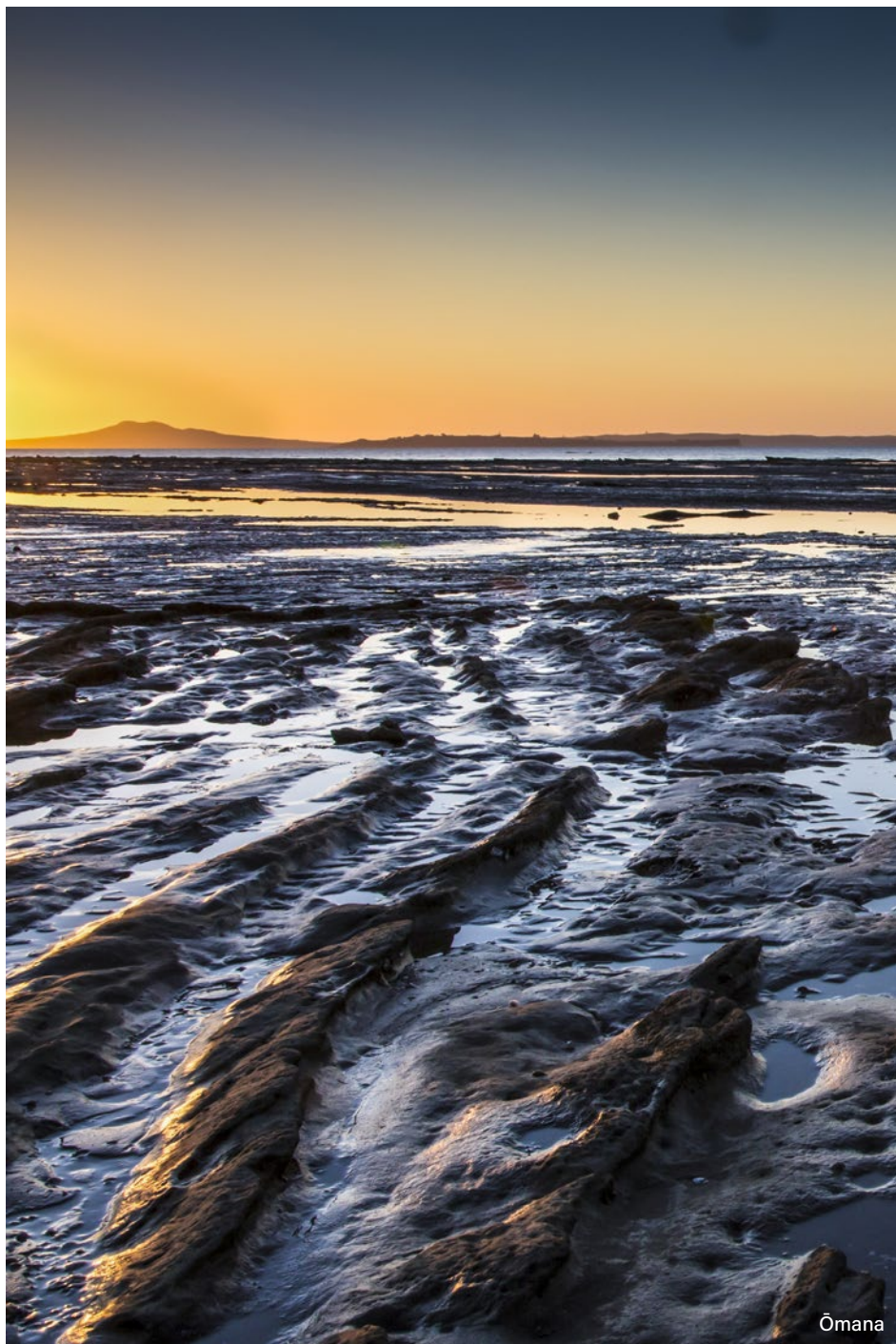
The concepts of governance and good governance have been discussed earlier in this report. Joseph emphasises that *'there is no single world-wide model for best practice governance due to differences in legal systems, institutional frameworks and cultural traditions'*.⁶⁹ Good governance appears to be subjective and determined by the unique characteristics of each system being governed.

4.3 Co-governance entities

As indicated above, there is broad and growing experience with establishing co-governance entities in New Zealand for natural resource management. Figure 5 summarises the key characteristics of six co-governance entities which have been recently established:

1. Te Waihora Co-Governance Group
2. Waikato River Authority
3. Te Urewera Board
4. Tūpuna Maunga o Tāmaki Makaurau Authority
5. Te Oneroa-a-Tōhē Board
6. Te Maru o Kaituna (Kaituna River Authority)

All of these co-governance models have resulted from Treaty settlements and are novel arrangements. The models govern a diverse range of areas, although examples are predominantly focused in the North Island. Figure 5 describes each model's governance area, authority, purpose, size, composition, decision rule, term of appointment, meeting frequency and whether they have a secretariat and/or chairperson. The information was gathered from Treaty Settlement Deeds and their respective Acts and the corresponding website of each authority. The figure reveals that there are a number of structural and functional similarities in these co-governance models.



Ōmana

Entity	Area covered	Authority	Purpose
Te Waihora Co-governance Group	Te Waihora/ Ellesmere Lake (197.8 km ²)	Ngāi Tahu Claims Settlement Act 1998	To implement the Whakaora Te Waihora Programme with the vision 'to restore and rejuvenate the mauri and ecosystem of Te Waihora and its catchment'
Waikato River Authority	Waikato and Waipa Rivers (11,000 km ²)	Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010 Ngati Tūwharetoa, Raukawa and Te Arawa River Iwi Waikato River Act 2010	To set the primary direction through the Vision and Strategy to achieve the restoration and protection of the health and wellbeing of the Waikato River for future generations, promote an integrated, holistic, and co-ordinated approach to implementation and fund rehabilitation initiatives
Te Urewera Board	Te Urewera, (2,127 km ²)	Te Urewera Act 2014	To act on behalf of, and in the name of, Te Urewera and to provide governance for Te Urewera
Tūpuna Maunga o Tāmaki Makaurau Authority	14 Tūpuna Maunga (ancestral mountains) in Tāmaki Makaurau (Auckland)	Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014	To enable the integrated management of the ancestral mountains of Auckland and implement the Tūpuna Maunga Integrated Management Plan

Size and composition	Decision rule	Term of appointment	Meetings	Secretariat and/or chairperson
10 members: Te Rūnanga o Ngāi Tahu (5), Environment Canterbury (3 commissioners), Selwyn District Council (1), Christchurch City Council (1), Ministry for the Environment (observer)	Consensus	3 years	Monthly	Co-chairpersons (1 Environment Canterbury and 1 Te Rūnanga o Ngāi Tahu)
10 members: Tainui (1), Te Arawa (1), Tūwharetoa (1), Raukawa (1), Maniapoto (1), Crown (3), regional council (1), territorial authority (1)	Consensus	3 years	Bimonthly	Co-chairpersons (1 iwi and 1 Crown)
8 members: Tūhoe (4), Crown (4 appointed by the Minister of Treaty Negotiations and Minister of Conservation, as agreed by Tūhoe). In 2017, the Board was to consist of 9 members, 6 appointed by the Trustees of Tūhoe and 3 appointed by Crown.	Consensus	3 years	Bimonthly	1 Chairperson (Trustee appointed), 1 Deputy Chairperson (board appointed)
12 members: Marutūāhu rūpū entity (2), Ngāti Whātua rūpū entity (2), Waiohū Tāmaki rūpū entity (2), Auckland Council (6) and a non-voting member (appointed by the Minister for Arts, Culture and Heritage)	Majority of votes cast (consensus sought first)	3 years	Monthly	1 Chairperson (rūpū entity appointed), 1 Deputy Chairperson (Auckland Council appointed). Secretariat and administrative support provided by Auckland Council

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Entity	Area covered	Authority	Purpose
Te Oneroa-a-Tōhē Board	Te Oneroa-a-Tōhē (Ninety-Mile Beach)	Te Rarawa Claims Settlement Act 2015	To provide governance and direction to all those who have a role in, or responsibility for, the Te Oneroa-a-Tōhē management area. The Board is tasked with preparing a beach management plan.
Te Maru o Kaituna (Kaituna River Authority)	Kaituna River	Tapuika Claims Settlement Act 2014	The restoration, protection and enhancement of the environmental, cultural and spiritual health and wellbeing of the Kaituna River

Figure 5: Summary of New Zealand co-governance entities



Size and composition	Decision rule	Term of appointment	Meetings	Secretariat and/or chairperson
8 members: Trustees (1), Te Manawa o Ngāti Kuri Trust (1), Te Rūnanga Nui o Te Aupouri Trust (1), Te Rūnanga o Ngāi Takoto (1), Northland Regional Council (2 – must be councillors holding office), Far North District Council (2: mayor and 1 councillor)	70% majority	5 years	Unknown	1 Chairperson (Te Rarawa), 1 Deputy Chairperson (iwi)
8 members: Tapuika Iwi Authority Trust (1), Tapuika Iwi Authority Trust and Te Kapu o Waitaha (1), Te Pumautanga o Te Arawa Trust (1), Te Tāhuhu o Tawakeheimoa Trust (1), Bay of Plenty Regional Council (1), Rotorua District Council (1), Tauranga City Council (1), Western Bay of Plenty District Council (1)	Consensus	3 years	Fortnightly	1 Chairperson (Tapuika Iwi Authority Trust), 1 Deputy Chairperson (Bay of Plenty Regional Council)



Ngāti Paoa waka taua, Karaka Bay



Hauturu-o-Toi-Little Barrier Island

We selected three of these models for closer examination. The Waikato River Authority was selected due to its prominence in co-governance literature. The Te Urewera Board was chosen because the Te Urewera Act 2014 welcomed in a 'new dawn' for conservation management in New Zealand by declaring Te Urewera a legal entity and establishing the Te Urewera Board to govern it.⁷⁰ Additionally, the Te Urewera Board is the first co-governance model to have more than half of its members comprised of iwi representatives. The Tūpuna Maunga o Tāmaki Makaurau Authority was selected due to its relevance to the Hauraki Gulf. Their key features are summarised in Figure 6.

Waikato River Authority

The Waikato River Authority is a statutory body corporate established under the Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010 and the Ngāti Tūwharetoa, Raukawa, and Te Arawa River Iwi Waikato River Act 2010. The Authority has additional responsibilities arising from the Nga Wai o Maniapoto (Waipa River) Act 2012. The settlement legislation focuses on restoring and protecting the health and wellbeing of the Waikato River for future generations. It applies to an area comprising the Waikato River from Huka Falls to Te Pūaha o Waikato, the Waipa River from its source to its connection with the Waikato River, and their respective catchments – some 11,000 km.

The Authority consists of 10 members, each appointed by the Minister for the Environment for a term of three years, including:

- Five members appointed from each river iwi (Tainui, Te Arawa, Tūwharetoa, Raukawa and Maniapoto)
- Five members appointed by the Crown – one member appointed by the Minister in consultation with the Ministers of Finance, Local Government and Māori Affairs on the recommendation of the Waikato Regional Council; one member appointed by the Minister in consultation with the same Ministers from persons recommended by the territorial authorities; and three members appointed by the Minister in consultation with the Minister of Finance and the Minister of Māori Affairs.
- The Minister for the Environment appoints one of the two co-chairpersons; iwi choose the other.

In appointing members to the Authority, the Minister must have regard to members already on the Authority to ensure the membership reflects a balanced mix of knowledge and experience in relation to the Waikato River.⁷¹ In making recommendations on members, local authorities do not have to undertake consultation but must be satisfied the person has the skills, knowledge and experience to participate effectively in the governance and management of the Authority and contribute to the overarching purpose of the settlement. If the councils or territorial authorities do not make recommendations, the Minister can appoint members who he or she thinks have a sound knowledge of the Waikato Region and have the attributes referred to above.⁷² The Authority has two co-chairs: one Crown appointee and one iwi appointee. The members must exercise the 'highest level of good faith engagement' and generally make decisions by consensus.⁷³

The purpose of the Authority is to:⁷⁴

- Set the primary direction of the Waikato River through the Vision and Strategy for the Waikato River to achieve the restoration and protection of the health and wellbeing of the Waikato River for future generations
- Promote an integrated, holistic and coordinated approach to the implementation of the Vision and Strategy and the management of the Waikato River
- Fund rehabilitation initiatives for the Waikato River in its role as trustee for the Waikato River Clean-up Trust

The Vision and Strategy responds to a number of fundamental issues including the degradation of the Waikato River and the effect this has had on Waikato River iwi and local communities, and the cumulative effect of physical intervention, land use and subsurface hydrological changes on natural processes. It recognises that it will take time and commitment to restore and protect the health and wellbeing of the Waikato River. The Vision and Strategy calls for a *'future where a healthy Waikato River sustains abundant life and prosperous communities, who, in turn are all responsible for restoring and protecting the health and wellbeing of the Waikato River, and all it embraces, for generations to come'*. This is to be realised through the pursuit of 13 objectives and 12 strategies. The Vision and Strategy is part of the Waikato Regional Policy Statement and affects other resource management planning documents.⁷⁵

To prepare the Vision and Strategy, the Authority is to work and consult with the Waikato River Clean-up Trust, relevant departments, local authorities and appropriate agencies in a cooperative and coordinated manner.⁷⁶ One of the principles of the settlement legislation is 'integration', which supports the effective integration of management between the relevant government agencies, Crown entities, local authorities, and non-governmental agencies who have roles and responsibilities in respect of the Waikato River.⁷⁷

The functions of the Authority are to:⁷⁸

- Engage with and provide advice to local authorities on amending RMA planning documents to give effect to the Vision and Strategy
- Engage with and provide advice to the range of other agencies with responsibilities relating to the Waikato River to achieve an integrated, holistic and coordinated approach to implementing the Vision and Strategy
- Engage with and provide advice to the Environmental Protection Authority
- Act as trustee for the Waikato River Clean-up Trust and, in that capacity, administer the contestable clean-up fund for the Waikato River
- Monitor its own effectiveness in carrying out its functions and the achievement of the Vision and Strategy and clean-up initiatives
- Report at least every five years to the Crown, Waikato-Tainui and the other appointers on the results of monitoring
- Periodically review the Vision and Strategy and, at its discretion, recommend amendments to it to the Crown, Waikato-Tainui and the other appointers
- Request call-ins under the RMA and appoint commissioners to sit on hearings committees or boards of inquiry

The Authority is funded through the Ministry for the Environment. Each year Parliament is presented with an annual report with financial statements and a summary of attendance at each meeting. The Authority is not subject to the Official Information Act 1982 or the Local Government Official Information and Meetings Act 1987. It does not have to make minutes of its meetings public or publicise where meetings are held, and can hold meetings behind closed doors. The Authority has a website which provides information on its own operations, its projects and key documents including report cards, annual reports and funding strategies.⁷⁹

Te Urewera Board

The Te Urewera Board is a statutory body established under the Te Urewera Act 2014. This Act replaced the National Parks Act 1980 for the governance and management of Te Urewera. Te Urewera National Park is part of a heavily forested mountainous area that sits in the heart of the Tūhoe tribal lands and covers 212,673 hectares. The park is the largest remaining area of indigenous vegetation in the North Island and is one of the larger national parks in the country. The area encompasses Lake Waikaremoana and Lake Waikareiti. The purpose of the Te Urewera Act is to establish and preserve in perpetuity a legal identity and protected status for Te Urewera for its intrinsic worth, its distinctive natural and cultural values, the integrity of those values, and for its national importance. Te Urewera is a legal entity and has all the rights, powers, duties and liabilities of a legal person.⁸⁰

The purpose of the Board is to act on behalf of, and in the name of, Te Urewera and provide governance for it.⁸¹ The Board must prepare and approve a Te Urewera management plan. The Board currently consists of eight members: four members appointed by the trustees of Tūhoe Te Uru Taumatua and four members appointed jointly by the Minister of Conservation and the Minister for Treaty of Waitangi Negotiations. The Te Urewera Act states that in 2017 the Board will consist of nine members comprising six members appointed by the trustees of Tūhoe Te Uru Taumatua and three members appointed by the Minister of Conservation. At the time of writing, the Board has not yet transitioned to this composition. Each member is appointed for three years. Members are chosen after considering whether the proposed member has the mana, standing in the community, skills, knowledge, and experience to participate effectively in the Board and to contribute to achieving the purposes of the Board.

The Board has a chair appointed by the trustees of the Board and a deputy chair appointed by the members of the Board. The chair must preside over meetings and act as a leader to promote unanimous or consensus decision-making. In decision-making, members of the Board must act for no other purpose than to achieve the purpose of the Board and must aim to reach consensus.

The functions of the Board are to:

- Prepare and approve a management plan for Te Urewera
- Advise the persons managing Te Urewera on the implementation of the management plan including issuing an annual statement of priorities for implementation, undertaking any special functions in relation to the annual operational plan and monitoring the implementation of the management plan
- Initiate proposals and make recommendations for adding land to, or removing land from, Te Urewera, and acquiring interests in land; and for establishing specially protected areas, wilderness areas and amenity areas within Te Urewera (these recommendations are then considered by the Minister of Conservation)
- Make bylaws for Te Urewera
- Authorise activities that must not otherwise be undertaken in Te Urewera
- Prepare or commission reports, advice or recommendations on matters relevant to the purposes of the Board
- Promote or advocate the interests of Te Urewera in any statutory process or at any public forum

- Liaise with, advise, or seek advice from any agency, local authority or other entity on matters relevant to the purposes of the Board

The Board may delegate some of its functions and powers to a committee to deal with certain matters, for example the preparation of a draft management plan, rāhui and the taking of cultural materials, and the granting of concessions and authorisations. The Act does not affect any other statutory functions and powers exercised by a body within Te Urewera.

The Board has a website which provides information regarding Tūhoe, Te Urewera, its governance and management. The website also notifies when and where Board meetings occur. The notification includes all the relevant information for the meeting and an agenda.⁸²

The Board is funded by the Tūhoe settlement and the Department of Conservation. Every year the board must adopt and publish an annual report which is given to the Minister of Conservation and trustees. Every five years, an independent review of the governance and management of Te Urewera must be undertaken.

Tūpuna Maunga o Tāmaki Makaurau Authority

The Tūpuna Maunga o Tāmaki Makaurau Authority was established under the Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014. A total of 14 tūpuna maunga (ancestral mountains) were returned to Ngā Mana Whenua o Tāmaki Makaurau (the 13 mana whenua iwi and hapū of Auckland). The tūpuna maunga hold a paramount place in the historical, spiritual, ancestral and cultural identity of the Ngā Mana Whenua o Tāmaki Makaurau. The continuous relationships of mana whenua with the tūpuna maunga comprises '*unbroken, living connections across the oceans and time*'. The Authority is the mechanism by which Ngā Mana Whenua o Tāmaki Makaurau may exercise mana whenua and kaitiakitanga (guardianship) over the tūpuna maunga and is the administering body under the Reserves Act 1977. The tūpuna maunga are held in trust for the common benefit of Ngā Mana Whenua o Tāmaki Makaurau and other Aucklanders.

The Authority comprises 12 members and one non-voting member:

- Two members are appointed by the Marutūāhu rūpū entity
- Two members are appointed by Ngāti Whātua rūpū entity
- Two members are appointed by Waiohua Tāmaki rūpū entity
- Six members are appointed by Auckland Council
- One non-voting member is appointed by the Minister for Arts, Culture and Heritage

Each member is appointed for a term of three years and can be reappointed. The members appointed by the rūpū entities must have whakapapa to one or more of the iwi or hapū comprising the rūpū. The members appointed by the rūpū entities must appoint the chairperson of the Maunga Authority from among its members. The members appointed by Auckland Council must appoint the deputy chairperson of the Maunga Authority from among its members. Matters are to be decided by majority vote, although in practice most decisions have been by consensus. The Auckland Council provides a secretariat for meetings and any other administrative support necessary for the Authority to carry out its functions.

The Authority has the power over the tūpuna maunga and administered lands delegated to Auckland Council by the Minister of Conservation. The Council remains responsible for the management of the tūpuna maunga under the direction of the Authority and in accordance with the operational plan.

The Authority has prepared and approved an integrated management plan for the tūpuna maunga which is now operative. A draft of the plan was made publicly available for submissions and then submitted to the Minister for approval. With Council, the Authority must also agree on an annual operational plan to implement the integrated management plan. The Authority can appoint any committees or subcommittees it deems appropriate in order to carry out its functions.

The Authority does not report to Parliament. It shares a website page with Auckland Council. The website provides details regarding the background of the redress legislation, the Authority and the tūpuna maunga integrated management plan. Minutes of the Authorities meetings are also accessible.⁸³

The Authority must prepare an annual report for each financial year and make copies of the report available at the Council and on its website. The report includes the dates and times of the Authority's meetings and a summary of the Authority's activities during the financial year. The Authority may also include other relevant information at its own discretion.

The Council pays for all the costs involved with the governance and management of the tūpuna maunga. The funding and revenue are held by the Council and must be accounted for separately. The Council must report every three months on the costs, funding and revenue of the maunga and provide to the Authority an annual financial report. The Authority may ask that the Council's auditor review the Council's accounts relating to the maunga to provide public confidence.



Long Bay, Ahuahu-Great Mercury Island

Principles	Waikato River Authority
<i>Legitimacy</i>	Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010 Ngāti Tūwharetoa, Raukawa, and Te Arawa River Iwi Waikato River Act 2010 Nga Wai o Maniapoto (Waipa River) Act 2012 The Authority was established to produce a Vision and Strategy to achieve the health and wellbeing of the Waikato River for future generations, to promote an integrated, holistic and coordinated approach to implement the Vision and Strategy and fund rehabilitation initiatives. The Board consists of 10 members: • 5 members appointed from each river iwi (Tainui, Te Arawa, Tūwharetoa, Raukawa and Maniapoto); and • 5 members appointed by the Crown: 1 member appointed by the Minister in consultation with the Ministers of Finance, Local Government, and Māori Affairs on the recommendation of the Waikato Regional Council; 1 member appointed by the Minister in consultation with the same Ministers from persons recommended by the territorial authorities; and 3 members appointed by the Minister in consultation with the Minister of Finance and the Minister of Māori Affairs.



Te Urewera Board	Tūpuna Maunga o Tāmaki Makaurau Authority
Te Urewera Act 2014 The Board was established to act on behalf of, and in the name of, Te Urewera and provide governance for Te Urewera. The Board must prepare and approve a Te Urewera management plan. The Board currently consists of 8 members: • 4 members appointed by the trustees of Tūhoe Te Uru Taumatua; and • 4 members appointed jointly by the Minister of Conservation and the Minister for Treaty of Waitangi Negotiations In 2017 the Board was to consist of 9 members, 6 appointed by the Trustees of Tūhoe and 3 appointed by the Crown.	Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014 The Authority was established to prepare and adopt an integrated management plan for the tūpuna maunga and administered lands. The Authority consists of 12 members and 1 non-voting member: • 2 members are appointed by the Marutūāhu rūpū entity • 2 members are appointed by Ngāti Whātua rūpū entity • 2 members are appointed by Waiohūa Tāmaki rūpū entity • 6 members are appointed by Auckland Council • 1 non-voting member is appointed by the Minister for Arts, Culture and Heritage

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Umupuia Marae

Principles	Waikato River Authority
Function	The other functions of the Authority are to: • Engage with and provide advice to local authorities on amending RMA planning documents to give effect to the Vision and Strategy • Engage with and provide advice to the range of agencies with responsibilities relating to the Waikato River, including local authorities and biosecurity, conservation and fisheries agencies • Engage with and provide advice to the Environmental Protection Authority • Act as trustee for the Waikato River Clean-up Trust and, in that capacity, administer the contestable clean-up fund for the Waikato River • Monitor the implementation, effectiveness and achievement of the Vision and Strategy, including any targets and methods, and the implementation, effectiveness and achievement of clean-up initiatives funded by the Waikato River Clean-up Trust • Report at least every 5 years to the Crown, Waikato-Tainui and the other appointers on the results of its monitoring • Periodically review the Vision and Strategy and, at the Authority's discretion, recommend amendments to it to the Crown, Waikato-Tainui and the other appointers • Request call-ins under the RMA • Appoint commissioners to sit on hearings committees or boards of inquiry when required to do so
Transparency	The Authority is a unique public entity; meetings do not have to be publicised, made public nor minutes shared. The Authority has a website which publicises its membership, purpose, functions, management, trust and current projects.

Te Urewera Board	Tūpuna Maunga o Tāmaki Makaurau Authority
The functions of the Board are to: • Prepare and approve a management plan for Te Urewera • Advise the persons managing Te Urewera on the implementation of the management plan including issuing an annual statement of priorities for implementing the management plan, undertaking any special functions in relation to the annual operational plan and monitoring the implementation of the management plan • Initiate proposals and make recommendations for adding land to, or removing land from, Te Urewera; acquiring interests in land; and establishing specially protected areas, wilderness areas, and amenity areas within Te Urewera (these recommendations are then considered by the Minister of Conservation) • Make bylaws for Te Urewera • Authorise activities that must not otherwise be undertaken in Te Urewera without an authorisation • Prepare or commission reports, advice or recommendations on matters relevant to the purposes of the Board • Promote or advocate for the interests of Te Urewera in any statutory process or at any public forum • Liaise with, advise, or seek advice from any agency, local authority, or other entity on matters relevant to the purposes of the Board	The Authority is the administering body for each maunga for the purposes of the Reserves Act 1977 with the exception of North Head, which is administered by DOC. The Authority has the same powers and functions as those conferred on Auckland Council for the management of the tūpuna maunga, motu (islands) and administered lands.
The Board has a website which provides information regarding Tūhoe, Te Urewera, its governance and management. The website also notifies when and where Board meetings occur and provides an agenda and all the relevant information for the meeting. Meetings are open to the public.	The Authority has a page connected to the Auckland Council website. It describes the Authority's history, role and function. Meeting agendas and minutes are also provided on the site. Meetings are open to the public.

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Principles	Waikato River Authority
Accountability	Amendments to the Vision and Strategy are made by Order in Council and only if recommended by the Authority. The Authority produces an annual report for the Minister for the Environment which is tabled in Parliament. The Authority must also report the results of its monitoring to the Crown at least every 5 years.
Inclusiveness	The Authority's membership must reflect a balanced mix of knowledge and experience in relation to the Waikato River. Members must have the skills, knowledge and experience to participate in the governance and management of the Authority and contribute to the overarching purpose of the settlement. In 2017, the Authority was made up of current and former central and local government politicians, executives, business consultants, iwi trustees and members of the iwi leaders forum.
Fairness	The Authority has two co-chairs. Decisions are generally made by consensus. Members must exercise the highest level of good faith.
Integration	The Board: - Has a vision for a healthy Waikato River. The Vision and Strategy is part of the Waikato Regional Policy Statement. - Joint management agreements have been set up between each local authority and the Authority. The Authority works with the Trust, relevant departments, local authorities and appropriate agencies in a cooperative and coordinated manner. - Must produce an integrated river management plan to achieve an integrated approach between all concerned parties

Te Urewera Board	Tūpuna Maunga o Tāmaki Makaurau Authority
The Board does not affect any other statutory functions and powers exercised by a body within Te Urewera. The Board may delegate some of its functions and powers to a committee to deal with certain matters. The Board publishes an annual report for the Minister of Conservation and trustees.	The Authority has the delegated powers of Auckland Council over the tūpuna maunga and motu. Auckland Council remains responsible for the operational management of the tūpuna maunga under the direction of the Authority and in accordance with the operational plan. The Authority can appoint any committee or subcommittee in order to carry out its functions. The management plan is open to public submissions and must be submitted to the Minister of Conservation for approval. The Authority produces an annual report for Auckland Council.
Members of the Board are chosen after considering whether the proposed member has the mana, standing in the community, skills, knowledge and experience to participate effectively in the Board and to contribute to achieving the purposes of the Board. In 2017, the Board was made up of current and former executives, current and former central and local government politicians, tourism and environmental consultants with executive experience and iwi trustees.	Members of the Authority appointed by the rūpū entities must have whakapapa to one or more of the iwi or hapū comprising the rūpū. In 2017, the Board was made up of local government politicians and iwi representatives.
The Board has a chair appointed by the trustees of the Board and a deputy chair appointed by the members of the Board. They preside over meetings to mediate and promote collaboration. Decisions are made by consensus.	The Authority has a chair appointed by iwi and a deputy chair appointed by Auckland Council. Decisions are made by majority.
The Board acts on behalf of Te Urewera which has been declared a legal entity in its own right. The Board prepares management plans and advises the relevant authorities on the implementation of the plan.	The Authority and Auckland Council agree on an annual operational plan to provide a framework in which the council will carry out its functions for the routine management of the maunga and administered lands for that year, under the direction of the Authority. The Annual Operational Plan must be prepared and adopted concurrently with Auckland Council's Annual Plan and must be included in the Annual Plan in summary form. In July 2016, the first integrated management plan was approved.

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Principles	Waikato River Authority
<i>Capability</i>	The Authority is funded through the Ministry for the Environment.
<i>Adaptability</i>	Each member is appointed to the Authority for 3 years.

Figure 6: Case studies of New Zealand co-governance entities



Te Urewera Board	Tūpuna Maunga o Tāmaki Makaurau Authority
The Board is funded by Tūhoe and DOC.	The Authority is funded by Auckland Council. The Authority is supported by a secretariat and administrative support when necessary.
Each member is appointed to the Board for 3 years. An independent review of the governance and management of Te Urewera is carried out every 5 years.	Each member is appointed to the Authority for 3 years.



Ōrakei Basin

4.4 Summary of co-governance characteristics

Overall there are many commonalities amongst the six co-governance models reviewed above:

- The models have a clear purpose: to set the primary direction and govern the area and resources related to the Treaty settlement that establishes them.
- The number of members in each model ranges from eight to 12 members.
- The co-governance models are predominantly made up of half mana whenua and half Crown representatives. The Te Urewera Board should have a greater proportion of mana whenua members but has yet to achieve this composition.
- Members are usually appointed for three years.
- Mana whenua members are elected and appointed through their own tikanga processes and have usually been involved with the Treaty settlement process, were previous chairs or trustees of iwi boards and/or have executive legal, financial or corporate skills and experience.
- Crown representatives are elected members from regional and local council or appointed members with extensive political, executive, legal, financial or corporate skills and experience.
- Central Government representatives oversee the Te Waihora Co-governance Group and the Tūpuna Maunga o Tāmaki Makaurau Authority but are not involved in decision-making.
- Mana whenua usually chair meetings and the Crown deputy chairperson or co-chairs are selected from within the authority's membership.
- Each co-governance entity is responsible for preparing a management plan (or similar) and is required to advise, implement and monitor the management plan to varying degrees.
- The co-governance arrangements are often supported by a secretariat, provided by local authorities, but not always.
- Meetings are held fortnightly, monthly or quarterly.
- Decisions are predominantly made by consensus. The Te Oneroa-a-Tōhē Board and Tūpuna Maunga o Tāmaki Makaurau Authority make decisions by a majority of votes where consensus cannot be achieved.
- Each co-governance arrangement is funded through numerous avenues (e.g., settlement contributions from the Crown, local authorities and grants from central government, often for particular projects).

Due to their relatively recent establishment, there is a lack of literature analysing the effectiveness of these models. Instead, the literature is focused on critiquing the broader principle of co-governance (as exemplified earlier in this chapter). There is evidently an immediate need for a review of the effectiveness of specific co-governance models in New Zealand in achieving cultural and environmental outcomes.

5 APPLICATION TO THE HAURAKI GULF



Pakiri, Craig Potton

This chapter takes the lessons from the above analysis on overseas and New Zealand natural resource governance models and applies them to the context of the Hauraki Gulf. Then it develops options for future governance arrangements for the area.

5.1 Hauraki Gulf

The Hauraki Gulf Marine Park is a shallow coastal sea comprising some 13,900 km².⁸⁴ It is a highly productive marine system which supports a major spawning and nursery area for snapper and other finfish.⁸⁵ The Gulf is also a seabird biodiversity hotspot, with over 70 species being sighted in the area, comprising 20 per cent of the world's total number of seabird species. At least 23 species breed in the Gulf.⁸⁶ The Gulf supports a year round population of around 50 Bryde's whales, the mainstay of a nationally critically threatened population of less than 200.⁸⁷ Common and bottlenose dolphins appear to use the Gulf as a calving and nursery area, possibly due to the year-round abundance of food.⁸⁸

The Gulf might have been one of the earliest places in New Zealand to be settled by eastern Polynesians, possibly around 1300 AD,⁸⁹ although oral tribal histories extend back further. Today there are multiple and overlapping Māori interests in the Gulf spanning more than 20 tribal groupings. Auckland, New Zealand's largest and fastest-growing city, is home to 1.6 million people and is located on the shores of the Gulf, resulting in multiple and increasing pressures on the marine system including through sewage overflows, sediment and heavy metal contamination from stormwater. The Gulf also supports a large commercial fishing and aquaculture sector as well as over 200,000 recreational fishers.⁹⁰ Some of New Zealand's most productive dairy land is located on the Hauraki Plains within the Gulf's catchments, resulting in elevated nutrient discharges. There are also extensive exotic forestry plantations in the Coromandel Ranges and dotted elsewhere around the region that are regularly clear-felled, increasing erosion and sedimentation risks.⁹¹

5.2 Hauraki Gulf Marine Park Act

The natural environment of the Gulf is currently governed by numerous agencies which operate under various pieces of legislation and have different priorities. The Gulf is administered by one unitary council (Auckland Council), one regional council (Waikato Regional Council) and four territorial authorities (Hauraki District Council, Matamata-Piako District Council, Waikato District Council and Thames-Coromandel District Council) which prepare policy statements and plans under the RMA. The Minister of Conservation prepares the New Zealand Coastal Policy Statement and approves regional coastal plans and marine reserves (with the concurrence of the Ministers of Fisheries and Transport). The Gulf spans three Department of Conservation areas (Waikato, Auckland and Great Barrier Island). The Ministry for Primary Industries manages fisheries resources and marine biosecurity in the Gulf through its agencies Fisheries New Zealand and Biosecurity New Zealand. Many iwi and hapū have environmental or resource management units which exercise kaitiakitanga over parts of the Gulf.

In its preamble, the Hauraki Gulf Marine Park Act recognises the outstanding ecological and landscapes features of the Gulf, the rich history of human settlement and use and the importance of the Gulf to tangata whenua and to others *'for recreation and for the sustenance of human health, well-being, and spirit'*.⁹² The overall purpose of the Act is to integrate the management of the natural, historic and physical resources of the Hauraki Gulf, its islands and catchments. The Act applies to 21 statutes including the RMA, Conservation Act 1987 and Fisheries Act 1996. It brings together the environmental management efforts of numerous statutory authorities whose activities impact on the

area. The Act also establishes the Hauraki Gulf Forum, which represents all local authorities adjoining the Gulf or its catchments and includes representatives of the Ministers of Conservation, Fisheries and Māori Affairs together with six representatives of local iwi.

As well as integrating management, the Act also seeks to provide better recognition of the deeply rooted relationships which exist between tangata whenua and the Gulf. Its purpose acknowledges the need *'to recognise the historic, traditional, cultural and spiritual relationship of the tangata whenua with the Hauraki Gulf and its islands'*.⁹³ The Act recognises that the Gulf has for generations supported and was home to tangata whenua. These provisions highlight two strong themes in the Act: the importance of integrated management and the significance of the relationships between people and the natural resources of the Gulf.

Part 1 of the Act contains a set of common matters of national significance and management objectives to guide the decision-making of the various statutory agencies. Part 2 of the Act establishes the Hauraki Gulf Forum. The Forum provides an opportunity for representatives from tangata whenua and the various statutory bodies involved in managing the Gulf to share information, discuss issues of common concern, and devise coordinated plans of action. Part 3 of the Act creates the Hauraki Gulf Marine Park. The Marine Park largely consists of all the seawater in the Gulf, its foreshore and seabed, and coastal reserve land administered by the Department of Conservation, much of which is situated on islands.

The Act recognises that the Gulf has complex interrelationships that have to be managed in a manner that crosses territorial jurisdictions, land and water boundaries, and cultures while respecting both conservation and development needs. Matters of national significance and management objectives for the Gulf are expressed in sections 7 and 8 of the Act. Agencies which are tasked with undertaking functions affecting the Gulf under other environmental legislation must incorporate these matters into their planning and decision-making processes. The main agencies which are tasked with applying these provisions are the Ministry for Primary Industries, the Department of Conservation, regional councils and territorial authorities.



Matiatia, Waiheke Island

5.3 Hauraki Gulf Forum

The Hauraki Gulf Forum was established in 2000 to integrate the management of the Gulf, foster cooperation and coordination between the relevant management agencies, and to recognise the relationships of tangata whenua with the Gulf. Dr Graeme Campbell, the architect of the Act, described the Forum as *'not a management agency but a collective of managers who can be spurred into action by the Forum. It is a place for big strategic debates and about the long-term intergenerational thinking about the future of the Gulf'*.⁹⁴

In its early years, the Forum focused on identifying strategic issues and reporting on the state of the Gulf. In 2007 a permanent executive officer was appointed, which allowed the Forum to pick up a broader range of functions within its mandate. This included increasing its emphasis on communication to build public and agency awareness of the Gulf's state, pressure and needs. More recently, the Forum began supporting specific mitigation and remediation initiatives – notably Bryde's whale ship strike and mussel reef regeneration projects. It also played a lead role in the establishment of Sea Change to develop a marine spatial plan for the Gulf.

There are currently 21 members of the Forum:

- One representative appointed each by the Ministers of Conservation, Fisheries and Māori Affairs
- Seven representatives appointed by Auckland Council
- One representative appointed by each of the following local authorities – Hauraki District Council, Matamata-Piako District Council, Thames-Coromandel District Council, Waikato District Council and Waikato Regional Council
- Six representatives of the tangata whenua of the Hauraki Gulf and its islands appointed by the Minister of Conservation, after consultation with the tangata whenua and the Minister of Māori Affairs

Each representative may serve on the Forum for the period of time determined by the constituent party that appointed the representative. The Minister of Conservation determines the length of appointment of tangata whenua. The Forum appoints one of its own members to act as a chairperson. The Members appointed by Auckland Council must be members of that council or one of its local boards and must include a member of each of the Great Barrier Island and Waiheke Island local boards.

The purposes of the Forum are set out in section 15 of the Act and include:

- To integrate the management and, where appropriate, to promote the conservation and management in a sustainable manner, of the natural, historic and physical resources of the Hauraki Gulf, its islands and catchments, for the benefit and enjoyment of the people and communities of the Gulf and New Zealand
- To facilitate communication, co-operation and co-ordination on matters relating to the statutory functions of the constituent parties in relation to the Hauraki Gulf, its islands and catchments, and the Forum
- To recognise the historic, traditional, cultural and spiritual relationship of tangata whenua with the Hauraki Gulf, its islands, and, where appropriate, its catchments

The Forum has powers to consider issues related to its purpose, to receive reports from constituent parties, to make recommendations to constituent parties, and to advise any person who requests the

Forum's advice. It has a wide range of functions, set out in section 17 of the Hauraki Gulf Marine Park Act and which are summarised in Figure 7.

• Prepare a list of strategic issues, determine a priority for action on each issue, and regularly review that list
• Facilitate and encourage coordinated financial planning, where possible, by the constituent parties
• Obtain, share, and monitor information on the state of the natural and physical resources
• Receive reports on the completion and implementation of deeds of recognition
• Require and receive reports from constituent parties on the development and implementation of policies and strategies to address the issues identified
• Receive reports from the tangata whenua of the Hauraki Gulf on the development and implementation of iwi management or development plans
• Prepare and publish, once every three years, a report on the state of the environment in the Hauraki Gulf, including information on progress towards integrated management
• Promote and advocate the integrated management and, where appropriate, the sustainable management of the Hauraki Gulf, its islands, and catchments
• Encourage, share, coordinate where appropriate, and disseminate educational and promotional material
• Liaise with, and receive reports from, persons and groups having an interest in the Hauraki Gulf and business and community interests to promote an interest in the purposes of the Forum
• Commission research into matters relating to the functions of the Forum

Figure 7: Functions of the Hauraki Gulf Forum

The Act puts emphasis on integrating the management of the Gulf across different physical environments, management agencies and planning documents. The Forum is deemed to be a joint committee of the constituent local authorities in accordance with the Local Government Act 2002. Over 20 regional and district RMA planning documents apply to the Gulf. Regional policy statements are the key RMA documents providing for integrated management of the Gulf. However, they do not currently include fisheries or marine protection.

The Forum is administered by Auckland Council. The costs of administrative and servicing functions of the Forum are divided among the constituent parties according to a formula which takes into account factors such as geographic area and population size. Total annual funding is approximately \$250,000. The budget includes the cost of an executive officer to provide staff support to the Forum as well as funding for any specific initiatives the Forum has agreed to undertake, set out in an annual work plan. Each constituent party and tangata whenua member may appoint a technical officer to support the party's contribution to the Forum. This is funded by the respective party, and in the case of tangata whenua, by the Department of Conservation.

The Forum shares a website page with Auckland Council. The website provides details regarding the background of the Hauraki Gulf Marine Park Act and Forum. The website also displays the annual reports, *State of Our Gulf* reports and the Forum meeting minutes and agendas. Meetings are open to the public.⁹⁵

5.4 Findings of independent reports

The following section summarises the findings and recommendations of four recent reports that concern governance of the Gulf and in particular the Hauraki Gulf Forum. In chronological order, the first report is an independent review of the Forum (Bradley report, June 2015), the second is a recommendation for the governance of the Forum (Beverley report, June 2016), the third is governance recommendations within the Sea Change marine spatial plan (Sea Change recommendations, December 2016) and the fourth looks at the implications of the marine spatial plan for the Forum (Jenkins report, February 2017). Three of the four reports, excluding the Sea Change plan, were commissioned by the Hauraki Gulf Forum, which is to be commended for initiating important work in this area.

Bradly report

An independent review of the Forum was undertaken in June 2015 by Dr Nigel Bradly from Envirostat Limited. A review was timely as the Forum had not been reviewed in 10 years, new members had joined, Sea Change was active and numerous Treaty settlements had been completed. The review considered whether the objectives of the Act in Part 1 were being promoted effectively; governance; resourcing; the Forum's functions; the concept of the Marine Park; and the contextual influences on the Forum (the impending marine spatial plan and Treaty settlements). The review was based on desktop reviews of written material provided by the Forum, observing a meeting and 33 semi-structured interviews.

The Bradly report made a number of findings and recommendations in relation to the functioning of the Forum including, in particular, its governance. It concluded that the *'Hauraki Gulf Forum is failing to adequately promote the objectives of the Act, and will not do so without significant change'*. All interviewees expressed this view. They also supported an entity with the ability and mandate to work across geographic and sectoral boundaries and to advocate for, monitor and provide leadership in the Gulf. The report went on to say *'the root cause of failure is individual and collective governance, and in particular the inability or unwillingness of members to collectively act as a "political peer group" to provide the leadership envisaged by the legislation'*. Conflict was rife between conservation and development perspectives, tangata whenua, and local, regional and central government. At the centre of the failure of the Forum to promote the objectives of the Act was a *'mismatch of willingness, understanding and expectations of members'*.⁹⁶

The Bradly report suggested governance should be reformed and the current structure be replaced by a Forum that:

- Has a smaller, more agile membership that provides a peer group of politically aware and strong leaders committed to promoting the objectives of the Act (Recommendation 1)
- Can work with statutory organisations but does not necessarily need to be formed by them (Recommendation 1)
- Has a structure and decision rule that reflects the Crown-iwi partnership (Recommendation 4)
- Can provide rigorous and independent policy advice informed by the requirements of sections 7 and 8 of the Act in the planning and policy activities of constituent parties (Recommendation 3)
- Has an Executive with sufficient skills and capacity to deliver outcomes (either staff or outsourced) in areas including promotion, education, advocacy, policy and planning, fund

management, independent reporting and stakeholder and community advisory support (Recommendation 6)

- Has a clear vision and purpose that underpins the activities and priorities of the Forum (Recommendations 10 and 11)

In terms of functions, the report suggested that the Forum consider:

- Adopting the Sea Change marine spatial plan which would align the Forum under a clear vision and provide the list of strategic issues coupled with a long-term plan to address gaps/future work requirements (Recommendation 10)
- Becoming the long-term monitoring/implementation and oversight entity for the marine spatial plan (Recommendation 18)
- Creating a Park Management Plan to reflect the purpose of the Marine Park and better define how the Park concept aligns with the objectives of the Act (Recommendation 12)
- Being the 'voice of the Gulf' for issues relevant to the Marine Park, such as marine protected area reforms (Recommendation 13)

Beverley report

In June 2016, a second report, named *Hauraki Gulf Forum Governance Review and Recommendations*, was written by Paul Beverley (Partner, Buddle Findlay Lawyers), Vaughan Payne (Chief Executive, Waikato Regional Council) and Mark Maloney (Head of Internal Audit, Auckland Council). The Beverley report emphasised the need for '*an independent entity to enhance the interests of the Gulf*' and suggested the Hauraki Gulf Forum would be 'ideal' for the role if configured and supported appropriately. The report reiterated that the current governance model for the Hauraki Gulf Forum is not effective and the opportunity for '*independent, influential and effective leadership*' is not being realised.



The Beverley report built on the earlier Bradly report and provided the following recommendations to address the governance issues within the Hauraki Gulf Forum:

- Particular attention must be paid to Treaty settlements and the current Treaty settlement processes, as well as the Sea Change process
- The governance model for the Forum should be changed to a co-governance approach, comprising equal numbers of mana whenua and other members
- Mana whenua should appoint their members directly through a process designed and approved by mana whenua
- The size of the Forum should be reduced to 16 members
- The Forum membership should be made up of eight members appointed by mana whenua; five members appointed by the Minister of Conservation (e.g., political, business, community or NGO leaders rather than Crown representatives); and three members appointed by local authorities (one from each of Auckland Council, Waikato Regional Council and the territorial authorities collectively and these may or may not be elected members)
- The term of appointment should be for three years with the ability to reappoint up to a maximum number of terms to be agreed, with a staggering of terms to ensure that there is some continuity of knowledge across terms
- The Forum should have more statutory authority and a stronger and more direct role in terms of statutory decision-making over the Hauraki Gulf
- As an interim step, the Forum should create a smaller 'core group' of 12 members to drive more focused and strategic governance for the Forum, and at the same time advance the case for legislative amendment to the Act
- The chief executives of the local authorities and relevant ministries/departments should work together to implement these recommendations immediately following the 2016 triennial local authority elections

These recommendations provoked some controversy amongst Forum members, particularly over the co-governance proposals, and were not further developed or implemented.



Sea Change – Tai Timu Tai Pari

The marine spatial plan was finalised in December 2016 through a collaborative stakeholder marine spatial planning process, which took some three years. The process has recently been reviewed separately by EDS and the Controller and Auditor General.⁹⁷ Sea Change was overseen by a co-governance Project Steering Group made up of 16 members comprising eight mana whenua and eight agency representatives. Auckland Council and the Waikato Regional Council had two members each, territorial authorities collectively had one member, and the Ministry for Primary Industries, Department of Conservation and the Forum had one member each.

A Stakeholder Working Group, consisting of four mana whenua representatives and 10 stakeholders representing commercial and recreational fishing, farming, aquaculture, infrastructure, community, and environmental interests developed the marine spatial plan under the oversight of the co-governance group.

The purpose of the Sea Change process was to '*develop a marine spatial plan that would achieve sustainable management of the Gulf, including a Gulf that is vibrant with life and healthy mauri, is increasingly productive and supports thriving communities. It aims to provide increased certainty for the economic, cultural and social goals of the Gulf community and ensure the ecosystem functions that make those goals possible are sustained.*'⁹⁸

The marine spatial plan proposes over 180 recommended actions structured into four kete (baskets) of knowledge which grouped related chapters and issues. The kete were named Kaitiakitanga (guardianship), which introduces mana whenua and describes an interwoven management approach; Mahinga kai, pātaka kai (replenishing the food basket), which addresses fish stocks and aquaculture; Ki uta ki tai (ridge to the reef or mountains to sea), which addresses biodiversity and water quality and catchments; and Kotahitanga (prosperous communities), which concerns community access and infrastructure. Some of the major recommendations within the marine spatial plan are shown in Figure 8.

- The establishment of a network of marine protected areas in the Gulf including 11 new Type 1 marine protected areas (primarily no-take), extensions to two existing marine reserves, and nine new Type 2 marine protected areas (benthic protection). The plan also recognises other gaps that need to be addressed during implementation.
- The establishment of Ahu Moana – mana whenua and community coastal management areas
- The transitioning of trawling, dredging and Danish seining out of the Gulf, and moving to higher value and less environmentally damaging fishing methods. This is to enable the recovery of benthic habitats and important juvenile nursery grounds.
- Active benthic habitat restoration initiatives including mussel reef reinstatement
- The establishment of a high profile Gulf Sediment Initiative to significantly reduce the amount of sediment entering the marine area
- Capping nutrient levels entering the Firth of Thames whilst putting in place nutrient limits
- The establishment of 13 new aquaculture areas

Figure 8: Key recommendations of Sea Change – Tai Timu Tai Pari

The plan was developed as an integrated package, and the Stakeholder Working Group emphasised that it should be implemented as a whole. The actions are broadly consistent with the Forum's vision and the management objectives in the Hauraki Gulf Marine Park Act. However, it is clearly not possible to undertake all the actions immediately, and agencies and stakeholders will need to prioritise them for time-staged implementation.

The plan does not identify lead agencies to implement each of the actions. Instead, the expectation was that the partner agencies would work together to coordinate the implementation and delivery of the plan as a whole. For some actions the lead agency is clear based on statutory purpose and legislative functions.

The marine spatial plan describes the Forum as providing an '*overarching perspective*' on the management of the Gulf and acknowledges that the Forum is reconsidering its form and function. However, it does not go so far as to recommend explicit changes to the Forum. Instead, the plan describes the general attributes that a coordinating and governing entity for the Hauraki Gulf would need to possess to successfully deliver the vision and pathways the plan promotes. To successfully implement the marine spatial plan, the plan notes that '*strong, effective co-governance*' is critical. It suggests that a governance entity for the Gulf should have the following attributes:⁹⁹

- Its make-up should reflect co-governance principles with membership from mana whenua and the community at large. For this to occur, the case for amending the statute to revise membership and the operating model will need to be considered.
- All members should bring the ability to make decisions and influence people. They need to be community leaders with considerable courage and ability to drive outcomes for the Gulf.
- Its size should be manageable but large enough to allow for sufficient representation of the various groups and range of skills required.
- Central and local government agency staff should act as advisors to the governance entity.
- It should be sufficiently mandated to be able to contribute meaningfully to the outcomes sought in the marine spatial plan for the Marine Park.
- It could initiate 'Action Committees' with wider membership to oversee and report on the various initiatives undertaken.

In terms of functions, the marine spatial plan suggests that the governance entity needs to be the champion for the Gulf and focus on the acceptance, adoption, and implementation of the marine spatial plan. This includes:¹⁰⁰

- Leading strategic Gulf-wide initiatives described in the marine spatial plan that are clearly not the role of any particular statutory agency, and/or facilitating interagency cooperation to ensure priority initiatives are implemented
- Overseeing the design of a detailed implementation plan (within six to nine months of adoption of the spatial plan), which could commence with prioritised fisheries reviews, the development of key performance indicators, and commitment to monitoring and review protocols being established
- Overseeing and coordinating research, information gathering, and reporting for the Hauraki Gulf, as well as providing a central place where Gulf information is held

- Establishing a public awareness and education campaign on the implementation of the marine spatial plan and other relevant issues associated with the Gulf
- Coordinating and supporting the community initiatives and restoration groups actively engaged with the care of the Gulf
- Providing recommendations to the Minister for Primary Industries on fisheries sustainability measures and regulations applying to the Gulf; this includes working with the Minister and local mana whenua groups in establishing customary fisheries tools such as mātaimai, taiāpure and rāhui
- Supporting mana whenua and local communities in the establishment of Ahu Moana.
- Assisting iwi to realise their goal of greater participation in the governance, management and kaitiakitanga of the marine space
- Working closely with the Department of Conservation, iwi/hapū and local stakeholder groups and communities to help establish the network of marine protected areas identified in the spatial plan and providing support to iwi/hapū and local communities to ensure that they are successfully managed in the long term
- Ensuring that all government agencies and stakeholders consider potential impacts on the Gulf's ecosystems, and document their process to do this as an integral part of their decision-making systems
- Developing guidance material on how an ecosystem management/mātauranga Māori management approach should be applied to fisheries, conservation and resource management decision-making in the Hauraki Gulf Marine Park and its catchments



Colville Harbour

Jenkins report

In February 2017 a report titled *Implications of the Sea Change Tai Timu Tai Pari Marine Spatial Plan* was published by Martin Jenkins. This report provided an overview of the recommendations made in Sea Change, highlighted their high level implications, and provided a basis for the Forum to respond.

The report notes that the marine spatial plan governance recommendations emphasise the importance of integrated management of the Gulf and the effective coordination of all actions of all management agencies under a clear vision. It clarifies that the Forum is the '*default entity to pick up many of the leadership, coordination and oversight roles and functions identified by Sea Change as being necessary to achieve its vision and promote the pathways it outlines in the marine spatial plan*'.¹⁰¹ The author posits that with additional resourcing and support from members and other government departments, there is scope within the Forum's current mandate for it to expand the range of activities it undertakes. Other functions required to implement the plan would require the Forum to '*stretch beyond the edge of its current mandate and would require enabling statutory change*' as they go beyond the current oversight, communication and commentary role performed by the Forum, and extend into policy analysis and advice, implementation support, directive leadership and approval or decision-making roles.¹⁰²

The report explains that the Forum could carry out a number of functions required by the marine spatial plan without making any statutory changes, which include:¹⁰³

- Be the 'champion' of the Gulf and in doing so '*satisfy perceptions that the Forum could be doing more*'
- Oversee and coordinate research, information gathering and reporting for the Gulf, as well as provide a central place where Gulf information is held (provided a broad interpretation of its functions is taken and acknowledging the Forum already produces *State of Our Gulf* reports and has an explicit coordination and integration role)
- Advance public awareness and education on the implementation of the marine spatial plan and other relevant issues within the Gulf through the Forum's existing public information and communications programme
- Coordinate and support community initiatives and restoration groups as the Forum already '*plays a role in this space*'
- Provide recommendations to the Ministry for Primary Industries on fisheries sustainability measures and regulations as a broad reading of the Forum's function would allow it to do so (the Forum is already '*empowered to require reports from and provide recommendations to the Ministry for Primary Industries*')
- Develop guidance material on ecosystem management/mātauranga Māori and require agencies to report on their progress in applying such an approach to Gulf management
- Lead regular meetings with statutory agencies to track progress implementing the plan

The report suggests some of the other desired functions would require statutory change to the Hauraki Gulf Marine Park Act and various other statutes. Membership of the Forum would need to be changed and its role substantially extended by requiring it to approve plans that other agencies and plans would be required to 'give effect to'.¹⁰⁴ The report claims that doing so would cause the relationship between the Forum and other management agencies to fundamentally change. Statutory change would be required to allow the Forum to:

- Lead strategic wide initiatives in the Gulf. In order to do this, the Forum would benefit from more direct powers and governance arrangements specifically for this purpose
- Play a formal oversight role in the design of a detailed implementation plan (as opposed to an informal coordinating and recommendatory role)
- Establish Ahu Moana and similar arrangements
- Assist iwi to participate in governance, management and kaitiakitanga of the marine space
- Work with partners to establish the network of marine protected areas identified in the marine spatial plan
- Ensure (as opposed to recommend) all government agencies and stakeholders consider potential impacts on the Gulf's ecosystems as part of their integral decision-making systems
- Review the effectiveness of the marine spatial plan; this would require a minor/technical change to the Act to incorporate this assessment into the *State of Our Gulf* reports
- Revise the marine spatial plan and respond to issues raised in the review. The Forum should be responsible for approving each iteration of the marine spatial plan which agencies would be required to give effect to under their various statutory instruments
- Review relevant draft statutory documents prepared by agencies prior to public notification to ensure they give effect to the marine spatial plan and the Hauraki Gulf Marine Park Act



The report highlights that the Forum faces a choice between:¹⁰⁵

- *Maintaining its current scope* of activities – the effectiveness of which has been questioned by independent reviews and judged inadequate by the Sea Change process
- *Extending the scope* of its actions to include the leadership, coordination and advisory functions recommended by Sea Change that can be realised within its current mandate, and seeking member support and resourcing to allow it to undertake these roles effectively
- *Seeking statutory changes* to its mandate to enable it to adopt functions that change its structure and provide it with decision-making and approval powers that determine the direction of other agencies' planning and research programmes.

The Forum is in a period of change. Its Executive Officer of 10 years departed in late 2017 and a replacement has only recently been appointed. Both the long-serving Chair and Deputy Chair resigned during 2018 and have been replaced with other members. The 2017 *State of Our Gulf* report reinforced previous commentary. It states that the Forum is not working as a political/governing body, its members are passive and advocates for single-issued policies, and they are failing to work together in an integrated way. The report also emphasises a recent Court ruling that highlights that the Hauraki Gulf Marine Park Act has conflicting objectives and the Crown is only obliged to take very limited account of it in decision-making. The report calls for the Crown to intervene to resolve the Forum's issues. The Forum also wants to collaborate with government to implement the marine spatial plan.¹⁰⁶



5.5 Governance options for the Hauraki Gulf

The development of options in this section builds on the analysis undertaken earlier in the report. Particular regard has been given to Treaty settlement principles described in Chapter 4, the Bradley and Beverley reports, and the changes required to the Forum in order to implement Sea Change (highlighted in the Jenkins report). We start from the basis that the case for reforming the Forum has been made and is compelling. Successive reports have concluded that the current configuration of the Forum is problematic and is hindering the Forum's ability to play an effective role in furthering the purpose of the Hauraki Gulf Marine Park Act. That this is a widely held view is confirmed by the finding in the Bradley report that all 33 interviewees concurred that the *'Hauraki Gulf Forum is failing to adequately promote the objectives of the Act, and will not do so without significant change'*. So, the key question is not whether the Hauraki Gulf Forum should be reformed but what a reconfigured Forum might look like.

It must first be acknowledged that there are no definitive rules to apply to the selection of an appropriate governance entity for the Gulf. The Forum has been identified as the default entity to pick up many of the leadership, coordination and oversight roles and functions identified by Sea Change. This section discusses design aspects of the Forum: size, composition, co-governance and functions. It then posits three possible configurations in order to foster constructive debate.

Size

The appropriate size of a governance entity depends on its specific circumstances and the amount of work involved (both frequency of meetings and volume of work addressed at and between meetings). Each entity is greatly influenced by legal systems, institutional frameworks and traditions, so there is no one-size-fits-all approach.¹⁰⁷ The size of an entity should be reasonable in order to tackle its functions and challenges.

Great Barrier Reef Marine Park Authority	Te Urewera Board	Waikato River Authority	Tūpuna Maunga o Tāmaki Makaurau Authority	West Coast Vancouver Island Governance Board	Sussex Inshore Fisheries and Conservation Authority	Hauraki Gulf Forum
5	8	10	12	18	21	21

Figure 9: Number of members in governance entities

As shown in Figure 9, the number of members in each of the governance entities studied spans from five members on the Great Barrier Reef Marine Park Authority to 21 members on the Sussex Inshore Fisheries Authority (which equals the number on the Hauraki Gulf Forum). There are pros and cons to both small and large entities. Smaller groups (e.g., less than eight members) make the decision-making process easier and are less resource intensive than larger groups. However, smaller groups mean less diversity, attendance may be an issue, the workload is often greater, there is a reduced skill set, and there is potentially less analysis of key issues. In 2017, an independent review of the governance of the Great Barrier Reef Marine Park suggested that five members (including a chief executive officer) limited the diversity of perspectives being brought to bear. The review suggested that a board with seven members would be more proportionate to the challenges the Authority was required to face.¹⁰⁸ In light of this finding, it is likely to be desirable for the Forum to have more than five members.

Larger groups (more than 12 members) allow for genuine diversity and incorporate a greater set of skills. The workload is able to be shared and the analysis and deliberation on key issues is enhanced. Larger groups are able to cope better with absent members and are more effective with succession planning. Despite this, managing larger groups is both resource and time intensive and does not necessarily result in better decision-making. Some members may reduce their commitment to the group because there are other members that can pull their weight, and smaller subgroups can appear which have the potential to derail the work of the group.

It seems likely that 21 members on the Forum is too many for effective governance of the Gulf. The Sussex Inshore Fisheries and Conservation Authority similarly has 21 members and the UK Government is considering how to limit the number of representatives, recognising that too many members can hinder good governance. The West Coast Aquatic Governance Board has 18 members who worked together to develop a marine spatial plan. Whilst the large group inevitably allowed for diverse interests and ideas to be shared in the process, the members were unable to reach consensus in the final stages, which prevented the plan's implementation. This suggests the Forum should have fewer than 18 members to operate effectively.

Medium-sized groups (between eight and 12 members) allow for a balance to be struck between effectiveness and diversity/skill base. Members are less likely to form groups and are able to engage fully and represent their own ideas, strengthening the decision-making process. Managing this size is not excessively costly. All of the contemporary co-governance models studied in New Zealand have between eight and 12 members. There is no guidance in any related material as to how the size of each entity was determined, but we can presume each entity was configured so it could adhere to good governance principles. Therefore, it is likely that between eight and 12 members would similarly be the optimum size for the Forum.

Member composition

The member composition of the governance entities studied reflects their unique context. As shown in Figure 10, some entities are made up entirely of appointed experts and others have more politicians. The Great Barrier Reef Marine Park Authority has an executive management model (combined chairperson/chief executive officer and small board). The New Zealand co-governance entities are predominantly a balance of Crown-appointed experts and iwi (except the Tūpuna Maunga o Tāmaki Makaurau Authority). The West Coast Aquatic Governance Board has mixed representation of indigenous people, community voices and politicians, and the Sussex Inshore Fisheries and Conservation Authority has a balance of community voices and politicians.

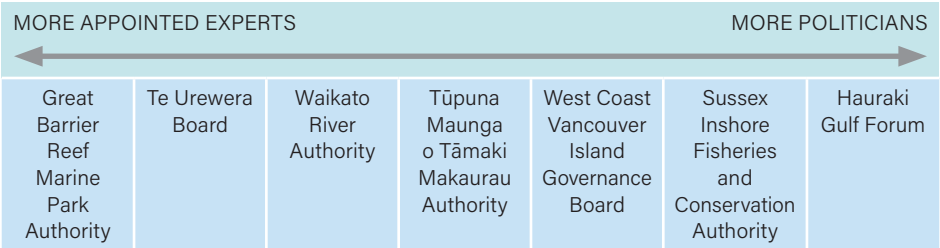


Figure 10: *Composition of members in governance entities*

The Great Barrier Reef Marine Park Authority is notably an effective governance entity which has successfully contributed to the conservation and management of the Marine Park. In 2017 a strategic

review recommended the continuation of the executive management model. The review suggested the entity had a '*critical mass of the technical, regulatory and policy expertise necessary to undertake its legislated functions*' and had strong community and stakeholder support.¹⁰⁹ Each member has expertise in a relevant aspect of the Marine Park.

In New Zealand, contemporary co-governance entities tend towards small and focused governance boards, with members who are committed to the purpose of the legislation and the role of the governance entity in implementing the legislation. The entities are made up of a diverse range of expertise and skills which allows them to respond to the challenges facing the environment. Members usually have expertise in one of the following: Treaty negotiations, Treaty settlement trusts and boards, public sector governance or management, strategic scenario planning, business, industry, relevant scientific fields or communication, education and community engagement. Additionally, members are usually required to have local knowledge of the area under management. The Tūpuna Maunga o Tāmaki Makaurau Authority is unusual in this respect in that it has political representatives from Auckland Council and no appointed experts. This is justified mainly because the Authority has a narrow mandate and Auckland Council is the only body which operationalises the management plan produced by the Authority. The management plan is open to public submissions, allowing stakeholder and community engagement further down the track.

The West Coast Aquatic Governance Board and Sussex Inshore Fisheries and Conservation Authority have community representatives on their entities. The representatives contribute local knowledge of the management area, share experiences from their work in area and are seen as highly valued members of the entities.

The current Forum is based on a highly representative model involving mana whenua, local politicians and officials from central government. This make-up reflects the multiple management agencies with responsibilities in the Gulf but is out of step with the composition of other natural resource governance entities that we have reviewed. In line with contemporary best practice, the Forum should look to include a greater proportion of experts and representatives from the community.

Co-governance

The adoption and implementation of co-governance entities around New Zealand has been an important development in natural resource governance over the last decade. The incorporation of the modern Treaty principles of co-governance has been emphasised in the Bradley report, the Beverley report and the Hauraki Gulf marine spatial plan. Co-governance is lauded as providing for better decision-making as it incorporates a broader range of knowledge, values, traditions and experiences around the governance table. The mana whenua emphasis on making decisions based on intergenerational time frames also encourages longer-term thinking, which may provide for better environmental outcomes. Due to their relatively recent establishment, critical analysis of how co-governance entities work in practice is lacking.

All Treaty settlement processes affecting the Gulf were meant to be concluded in 2014, but a number are still ongoing. The settlements to date have established various co-governance arrangements for parts of the Gulf and its islands. The Tāmaki Makaurau Collective Settlement (including 12 iwi and hapū) vested Rangitoto, Motutapu, Motuihe and Tiritiri Matangi in the Tāmaki Collective, who then gifted them back to the Crown for the benefit of all New Zealanders. The Collective now co-governs the islands alongside the Department of Conservation and both parties jointly approve the motu (island) conservation management plan.¹¹⁰ The Deed of Settlement acknowledges that the Waitematā Harbour is of great traditional, cultural, historical and spiritual importance to the Tāmaki Collective and that redress in relation to the harbour will be subject to future separate negotiations.

The Ngāti Manuhiri Settlement vested Te Hauturu-o-Toi/Little Barrier Island Nature Reserve in Ngāti Manuhiri, who in turn gifted the island back to the people of New Zealand. The Ngāti Manuhiri Claims Settlement Act 2012 puts in place a co-governance arrangement for the island, whereby the Ngāti Manuhiri Settlement Trust, Department of Conservation and Auckland Conservation Board jointly approve its conservation management plans.

The Hauraki Collective Settlement (finally agreed in August 2018) provides for the Pare Hauraki Collective Cultural Entity to be formed to represent the iwi of Hauraki in relation to natural resource matters. It will lead future Treaty negotiations for cultural redress over Tikapa Moana (the Hauraki Gulf). Co-governance arrangements will be established for the Firth of Thames catchments in the form of the Waihou, Piako and Coromandel Catchment Authority which will prepare and approve catchment plans (and these may form part of the regional policy statement). A conservation management plan is to be prepared for the Gulf islands, Coromandel Peninsula and Miranda wetlands which will be jointly approved by the Cultural Entity and the Conservation Board. There is much else in the Deed.

Other settlements that have been completed in the Gulf area include the Ngāti Whātua o Ōrākei Settlement, Te Uri o Hau Settlement and Ngāti Tūwharetoa Settlement. These have not resulted in arrangements that directly impact the Gulf. However, it is worth noting the Te Uri o Hau Settlement underpins the Integrated Kaipara Harbour Management Group, which is led by iwi and promotes the integrated management and inter-agency coordination and kaitiakitanga of the Kaipara Harbour and its catchments. The Marutūahu Collective Settlement is yet to be finalised.

The Marine and Coastal Area (Takutai Moana) Act 2011 provides for the recognition of customary rights through protected customary rights and customary marine title, which has implications for coastal management and the governance of the Gulf. The protection of protected customary rights is a matter of national importance that must be provided for in plan-making and holders of customary marine title have greater participation rights in plan-making processes. Multiple applications for customary rights and titles have been made under the Act for areas in the Hauraki Gulf, but have yet to be determined.

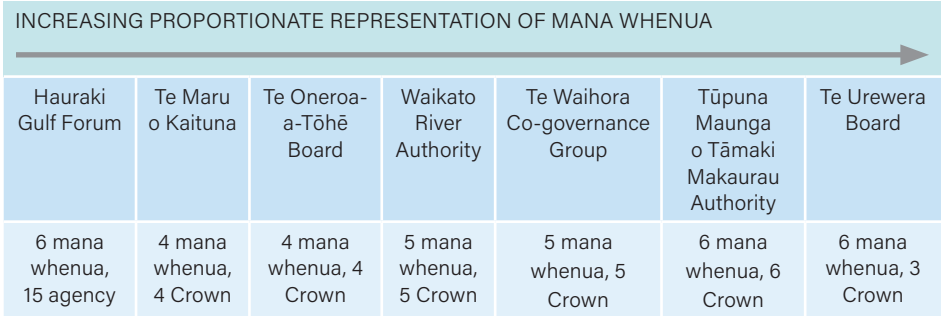


Figure 11: Proportion of mana whenua in co-governance entities

As shown in Figure 11, all of the New Zealand co-governance entities in this review have at least equal mana whenua and Crown representation. In the future, the Te Urewera Board will have the majority of its members made up of mana whenua. This suggests that a review of the Forum should look at equal mana whenua and Crown representatives as a starting position. Such consideration would allow the results of future settlement processes, which seem likely to follow a similar model, to be incorporated into the Forum structure with greater ease.

Whilst equal representation of mana whenua and the Crown is certainly best practice for co-governance entities, there is no recognised golden rule. The Sea Change co-governance recommendations for the Forum were less prescriptive than the Beverley report. The Sea Change plan suggested the entity should reflect co-governance principles and assist iwi to realise their goal of greater participation in governance. The Treaty principles underpinning the partnership between iwi and the Crown were explored in Chapter 4. The relationship is based on trust, and the Crown has to act reasonably, with honour and in good faith. Provided the Forum adheres to these principles, the Forum is not necessarily bound to reflect equal membership of Crown and iwi in a co-governance entity.

The proportion of mana whenua on the Forum could be increased from about one third to half in order to align with Treaty principles. There are currently around 26 iwi and hapū groupings with interests in the Gulf, but clearly far fewer can be directly represented on the Forum. Mana whenua will need to determine how iwi/hapū would be appropriately appointed to fewer positions, using their own culturally defined processes. Mana whenua representatives will likely bring other skill sets to the table in addition to mātauranga Māori, thereby contributing to the overall skill mix on the Forum.

In light of the above discussion, three potential models for a reconfigured Forum are proposed based on a membership of 12 and a 50:50 Crown/iwi partnership in terms of the number of members. These are shown in Figure 12. In all, there are fewer members and an increase in the proportion of mana whenua representation. The models provide the opportunity for central, regional and local government to act as observers on the Forum when they are not directly involved. This should assist the resilience of the Forum and the ability to implement its decisions. Some of the strengths and weaknesses of each model are identified in the table. Many other variants would be possible.



	Strengths	Weaknesses
Model 1: Mana whenua/Crown experts co-governance • 6 appointed by mana whenua • 6 experts appointed by Ministers • Invitation to central, regional and local authorities to act as observers and provide technical support where necessary	• Reduced and simplified membership • Based on expertise rather than representation • Independent and apolitical	• Mana whenua do not have increased membership overall but there is a proportionate increase. • Local non-indigenous knowledge is not included. • Community representatives and local authorities are not directly involved, which could threaten legitimacy and accountability.
Model 2 Mana whenua/Crown experts/community representatives co-governance • 6 appointed by mana whenua • 3 experts jointly appointed by Ministers pursuant to nominations solicited from local/regional authorities • 3 community representatives jointly appointed by Ministers pursuant to nominations solicited from the Gulf community • Invitation to central, regional and local authorities to act as observers	• Reduced and simplified membership • Includes a mix of technical expertise and local knowledge • Independent and apolitical • Community representatives directly involved	• Mana whenua do not have increased membership overall but there is a proportionate increase. • Local authorities are not represented which could threaten legitimacy and accountability.
Model 3: Mana whenua/local government/community representatives co-governance • 6 appointed by mana whenua • 3 jointly appointed by regional/local authorities • 3 community representatives jointly appointed by Ministers pursuant to nominations solicited from the Gulf community • Invitation to central government to act as observers	• Reduced and simplified membership • Includes local knowledge • Involves regional and local government more directly	• It does not directly include technical expertise. • The representative model is said to have been a key contributor to the governance difficulties identified in the Bradley report (in the event that local government politicians are appointed)

Figure 12: Possible membership composition of reconfigured Forum

Function

Figure 13 summarises the allocation of functions for the entities studied along a broad continuum. Currently, the Forum's purpose is to integrate the management of the Gulf, foster cooperation and coordination between the relevant management agencies, and recognise the relationships of tangata whenua with the Gulf. To achieve this purpose, the Forum is able to monitor, collate, share and disseminate information on the state of the Gulf and is required to establish a set of strategic priorities for those with management obligations in the area. It is widely accepted the Forum has not sufficiently enabled the objectives of the Hauraki Gulf Marine Park Act to be achieved. Such criticism calls for a significant change to the functions of the Forum to enable its purpose to be realised. A reorganisation of the Forum should consider one of the following options over the status quo.

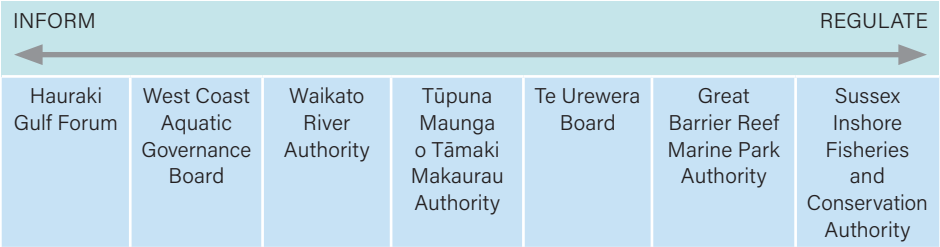


Figure 13: Allocation of functions for governance entities

We have identified three options for the prime function of the Forum, each with different implications for good governance. The first option involves expanding the Forum's current function without changing the Hauraki Gulf Marine Park Act. The second option requires the Forum to prepare and assist with the implementation of a management plan which requires changes to that Act and other statutes. The third option substantially extends the role of the Forum by granting it consenting and enforcement powers, necessitating more fundamental changes to the Act and related statutes.

Option 1 – The Communicator

Under this option the Forum would expand its current functions in line with the recommendations in the Jenkins report. The Forum would:

- Be the centralised database for information about the Gulf
- Develop guidance on ecosystem management and mātauranga Māori
- Provide recommendations to Fisheries New Zealand on fisheries management matters
- Lead meetings with statutory agencies to monitor their progress on strategic priorities
- Increase its public awareness and education role
- Coordinate community group initiatives and actions

These functions are similar to those of the West Coast Aquatic Governance Board, which was established to create a management plan to protect the aquatic resources in the area. The Board collated and analysed information on the health of the area and fostered initiatives that allowed local communities to sustainably utilise the aquatic resources. The resultant management plan included a set of values, vision, goals and objectives and priority areas and is now used as a decision-support tool. The Board also recommended changes to local authority and central government actions

to align with the management plan. Those parties retained their decision-making power over the management area.

After the management plan was produced, the Board was in hiatus until it changed its function. The Board now facilitates the Salmon Roundtables, which serve to implement the Pacific Salmon Treaty between the United States and Canada. This demonstrates that without a strong statutory mandate, the work produced by entities may be helpful to authorities but the entities' future is uncertain as they risk losing relevance and effect. The Forum should be wary of this shortcoming of Option 1.

Option 1 is an extension of the current role of the Forum and would not require any change to the Hauraki Gulf Marine Park Act or other statutes. This option does not give the Forum 'statutory teeth', which may reduce its effectiveness and hinder the implementation of the marine spatial plan. The Forum would remain an oversight body focusing on communication and advocating for the Gulf. However, to perform this expanded role it would need more staff and significantly more funding.

Option 2 – The Champion

Under this option the Forum would be the 'champion' of the Gulf and act on its behalf, in a similar way that the Te Urewera Board is the 'voice' of Te Urewera. The focus of the Forum would be to implement sections 7 and 8 of the Hauraki Gulf Marine Park Act and play a more direct role in statutory planning and policy processes. The Forum would:

- Lead strategic-wide initiatives in the Gulf
- Prepare and approve an 'Integrated Management Plan' for the Gulf which other planning documents must 'give effect to'
- Advise the range of agencies and local authorities with responsibilities in the Gulf on how to implement the Integrated Management Plan
- Ensure other planning documents give effect to the Integrated Management Plan
- Monitor the carrying out of the functions of the Forum, the state of the Gulf, and the implementation of the Integrated Management Plan including the achievement of any targets it sets
- Periodically review the Forum and the Integrated Management Plan every five years and report on their effectiveness to the Crown

Option 2 increases the Forum's functions to include policy-making analysis and advice, implementation and support, directive leadership and decision-making roles. All three of the New Zealand co-governance entities studied in this review have a similar purpose and scope of functions to those listed above.

Each co-governance entity was created to prepare and approve a management plan for the area they govern. The management plan is then approved by the Minister and the entities assist those with management responsibilities in the area to implement the management plan. This involves providing RMA advice to local authorities (Waikato River Authority) and preparing operational plans (Te Urewera Board and Tūpuna Maunga o Tāmaki Makaurau Authority).

The Gulf's Integrated Management Plan could be based on a revised marine spatial plan. The marine spatial plan is focused on making a real and measurable difference to the manner in which the Gulf is managed, used and protected, and would provide the Forum with a clear vision, strategic issues and a long-term direction. The Integrated Management Plan could be redrafted as a National Policy Statement or Regional Policy Statement under the RMA, be inserted into the Auckland and Waikato

Conservation Management Strategies under the Conservation Act, and could be approved as a Fisheries Plan for the Gulf under the Fisheries Act. The Integrated Management Plan would probably need to be approved by the Ministers for the Environment, Conservation and Fisheries who have decision-making authority under each piece of legislation respectively. The Forum could then be instrumental in designing an implementation plan for the Integrated Management Plan.

Option 2 is likely to improve the ability of the Forum to achieve its purpose and implement the marine spatial plan. It will require statutory change to the Hauraki Gulf Marine Park Act, RMA, Conservation Act and Fisheries Act, as well as substantial additional resourcing. Amendments to multiple pieces of legislation could be made through one amendment bill. These amendments would change the relationship between the Forum and other management agencies in the Gulf. The Waikato River Authority has created joint management agreements with each of the local authorities to help manage their relationship while implementing the Vision and Strategy for the Waikato River. The Forum could adopt a similar approach to relations with local authorities. Additional time and analysis will be needed to examine how each of the statutes would require change. Negotiations are also likely to be required with local authorities.



Home Bay, Motutapu Island

Option 3 – The Regulator

Under this option the Forum would have statutory powers to:

- Approve regional and district plans that apply to the Gulf
- Determine resource consent applications
- Prepare fisheries plans and set sustainability measures under the Fisheries Act 1996
- Prepare and approve conservation management plans
- Enforce regulations

In New Zealand, neither the Waikato River Authority nor Tūpuna Maunga o Tāmaki Makaurau Authority have such broad powers. Local authorities retain the ability to approve lower level planning documents and grant resource consents. The Te Urewera Board has the ability to make bylaws, create compliance and enforcement policy and provide authorisations for certain activities under the management plan. However, the management plan must give effect to the national level conservation strategy and the Minister for Conservation approves every bylaw. The Board's power is not unfettered. If the Forum was to gain these functions, there would need to be ministerial oversight of the body to enhance legitimacy and ensure accountability.

Two of the overseas entities studied have extensive regulatory and enforcement capabilities. The Great Barrier Reef Marine Park Authority is seen as a world leader in marine park management. The Authority has the ability to issue permits for commercial activities and operations in line with the zoning and management plans. Permits are issued mainly for marine tourism, research, harvest fisheries, dredging and infrastructure, and include detailed environmental impact assessments. The Authority also carries out education and enforcement activities to encourage adherence with legal requirements. The management of the Marine Park has been commended in a number of reports, despite facing staffing and funding challenges.¹¹¹

The Sussex Inshore Fisheries and Conservation Authority is able to make fisheries bylaws and employs enforcement officers to manage compliance with regulations. The Authority aims to *'implement a fair, effective and proportionate enforcement regime'* aligned with the work of other authorities and management agencies.¹¹²

The overseas experience highlights two aspects to be wary of when considering whether to transform the Forum into a statutory regulator. First, the way in which independent regulators attract, retain and motivate staff; and second, the need to integrate legislation, budgets and enforcement regimes. The Forum may be better to work alongside an established body like the Environmental Protection Authority if it were to adopt an enforcement role.

Option 3 represents a dramatic shift in the role of the Forum. This option will require extensive additional resourcing and changes to the Act and related statutes, although there would be commensurate savings by other regulators which would have a reduced work load. This option may be more controversial and politically challenging, notwithstanding the environmental benefits such entities with regulatory capabilities may provide.

In the interim, while a future governance arrangement is designed and implemented, the Forum could create a smaller 'core group' of members who could drive a focus on strategic governance and advance the case for the change of the legislation.

6 RECOMMENDATIONS AND CONCLUSIONS



Motuihe Island

The Hauraki Gulf Forum has been operating now for 18 years. It has had some notable achievements during that time, but there are strong indications that change to the composition and functions of the Forum is now desirable. This report has drawn together insights from overseas natural resource governance entities and co-governance entities recently established within the New Zealand. It has considered the specific recommendations in a series of reports written about the Hauraki Gulf Forum and the future governance of the Hauraki Gulf. It has reviewed the provisions of the Hauraki Gulf marine spatial plan. Several options were then identified for a redesign of the Forum which incorporates co-governance principles, reduces membership size, reduces political representation, and strengthens the Forum's functions.

EDS recommends that the role of the Forum be strengthened so that it acts as the 'champion' of the Gulf with a focus on playing a more direct role in statutory planning and policy processes in order to implement sections 7 and 8 of the Hauraki Gulf Marine Park Act. Under this proposal the Forum would:

- Lead strategic-wide initiatives in the Gulf
- Prepare and approve an 'Integrated Management Plan' for the Gulf which other planning documents must 'give effect' to
- Advise the range of agencies and local authorities with responsibilities in the Gulf on how to implement the Integrated Management Plan
- Ensure other planning documents give effect to the Integrated Management Plan
- Monitor the carrying out of the functions of the Forum, the state of the Gulf, and the implementation of the Integrated Management Plan including the achievement of any targets it sets
- Periodically review the Forum and the Integrated Management Plan every five years and report on their effectiveness to the Crown

In order to undertake this strengthened role the composition of the Forum needs to change. EDS recommends the following membership structure, which reflects co-governance principles and provides for a mix of expert and community representation:

- Six members appointed by mana whenua
- Three members jointly appointed by regional and local councils
- Three community representatives jointly appointed by Ministers pursuant to nominations solicited from the Gulf community
- Invitation to central government to act as observers

The Hauraki Gulf is a national treasure and institutional reforms are undoubtedly required if its values are to be protected. This report is intended to contribute to a constructive dialogue on what the future of its governance should be.

REFERENCES

- Ansell C and A Gash, 2008, 'Collaborative governance in theory and practice', *Journal of Public Administration Research and Theory*, 18(1), 543–571
- Bernstein S, 2005, 'Globalization and the requirements of "good" environmental governance', *Perspectives on Global Development and Technology*, 4(3), 645–679
- Beverley P, V Payne and M Molney, 2016, *Hauraki Gulf Forum governance review and recommendations*, unpublished report, Hauraki Gulf Forum, Auckland
- Bradly N, 2015, *Review of the Hauraki Gulf Forum*, Envirostat Limited, Hauraki Gulf Forum, Auckland
- Burton M, 2007, 'The significance of the Lands case for law and society', parliamentary speech, 30 June
- Campbell G, 2013, Presentation to the Hauraki Gulf Forum, Hauraki Gulf Forum, Auckland
- Commission on Global Governance, 1995, *Our global neighbourhood*, Oxford University Press, Oxford
- Constantine R, N Aguilar de Soto and M Johnson, 2012, *Sharing the waters: Minimising ship collisions with Bryde's whales in the Hauraki Gulf*, Research Progress Report, University of Auckland, Auckland
- Constantine R, M Johnson, L Riekkola, S Jervis, L Kozmian-Ledward, T Dennis, L G Torres and N Aguilar de Soto, 2015, 'Mitigation of vessel-strike mortality of endangered Bryde's whales in the Hauraki Gulf, New Zealand', *Biological Conservation*, 186, 149–157
- Controller and Auditor-General, 2016, *Principles for effectively co-governing natural resources*, report presented to the House of Representatives, Office of the Controller and Auditor-General, Wellington
- Controller and Auditor-General, 2018, *Sea Change – Tai Timu Tai Pari: Creating a marine spatial plan for the Hauraki Gulf*, Office of the Controller and Auditor-General, Wellington.
- Craik W, 2017, *Review of governance of the Great Barrier Reef Marine Park Authority*, unpublished report, Great Barrier Reef Marine Park Authority, Townsville
- Deloitte Access Economics, 2013, *Economic contribution of the Great Barrier Reef*, Great Barrier Reef Marine Park Authority, Townsville
- Dovers S, 2005, *Environment and sustainability policy: Creation, implementation, evaluation*, Federation Press, Sydney
- Dwyer S L, G Tezanos-Pinto, I N Visser, M D M Pawley, A M Meissner, J Berghan and K A Stockin, 2014, 'Overlooking a potential hotspot at Great Barrier Island for the nationally endangered bottlenose dolphin of New Zealand', *Endangered Species Research*, 25, 97–114
- Furey L, F Petchey, B Sewell and R Green, 2008, 'New observations on the stratigraphy and radiocarbon dates at Cross Creek site, Ōpito, Coromandel Peninsula', *Archaeology in New Zealand*, 51(1), 46–64
- Gaskin C P and M J Rayner, 2013, *Seabirds of the Hauraki Gulf: Natural history, research and conservation*, Hauraki Gulf Forum, Auckland
- Great Barrier Reef Marine Park Authority, 2014, *Great Barrier Reef region strategic assessment: Strategic assessment report*, Great Barrier Reef Marine Park Authority, Townsville
- Great Barrier Reef Marine Park Authority, 2017a, *Annual report 2016–2017*, Great Barrier Reef Marine Park Authority, Townsville

- Great Barrier Reef Marine Park Authority, 2017b, *Regulator performance self-assessment 2016–2017*, Great Barrier Reef Marine Park Authority, Townsville
- Hardin G, 1968, 'The tragedy of the commons', *Science*, 162(3859), 1243–1248
- Harmsworth G, S Awatere and M Robb, 2015, *Māori values and perspectives to inform collaborative processes and planning for freshwater management*, Policy Brief No. 14, Landcare Research, Hamilton
- Harris R C, 2015, *The changing face of co-governance in New Zealand – how are Ngāi Tahu and Ngāi Tūhoe promoting the interests of their people through power-sharing arrangements in resource management?*, Masters thesis, University of Canterbury, Christchurch
- Hartill B, 2014, 'Recreational fisheries in the Hauraki Gulf', presentation to the Sea Change Tai Timu Tai Pari Working Group meeting, 26 August, <http://www.seachange.org.nz/PageFiles/226/Recreational%20Fisheries%20in%20the%20Hauraki%20Gulf%20-%20Bruce%20Hartill%20-%20NIWA.pdf>
- Hauraki Gulf Forum, 2011, *Spatial planning for the Gulf: An international review of marine spatial planning initiatives and application to the Hauraki Gulf*, Hauraki Gulf Forum, Auckland
- Hauraki Gulf Forum, 2017, *State of our Gulf 2017*, Hauraki Gulf Forum, Auckland
- Her Majesty's Government, 2011, *UK marine policy statement*, Department for Environment, Food and Rural Affairs, London
- Higgins R, 2011, *Those that trespass will be relish for my food*, Victoria University of Wellington, Wellington
- Iorns Magallanes I, 2012, 'Co-governance and co-management of natural resources', presentation to the ECO Conference, Hamilton, September
- Joseph R, 2007, 'Contemporary Māori governance: New era or new error?', *New Zealand Universities Law Review*, 22(4), 682–709
- Kapea T and C Lenihan, 2013, 'Co-governance: New ways of doing things in a joined up world', Session 4, New Zealand Law Society Conference, April
- Karpen U, 2010, 'Good governance', *European Journal of Law Reform*, 12, 16–31
- Kooiman J, 2000, 'Societal governance: Levels, modes, and orders of social-political interaction', in J Pierre (ed), *Debating governance: Authority, steering, and democracy*, Oxford University Press, Oxford, 138–166
- Linkhorn C, 2012, 'Exploring co-governance and co-management', background document to the Parks Forum Master class, 25 May
- Lockwood M, J Davidson, A Curtis, E Stratford and R Griffith, 2013, 'Governance principles for natural resource management', *Society and Natural Resources*, 23(1), 986–1001
- Nicolson D, 2010, 'Flawed concept of co-governance misrepresents Treaty', *New Zealand Herald*, 11 May
- Norman P, 2011, 'Crown and iwi co-management: A model for environmental governance in New Zealand', Policy Paper 701 10/28/2011, University of Auckland, Auckland
- Ostrom E, 1990, *Governing the commons: The evolution of institutions for collective action*, Cambridge University Press, Cambridge
- Ostrom E, M A Janssen and J M Anderies, 2007, 'Going beyond panaceas', *Proceedings of the National Academy of Sciences*, 104(39), 15176–15178

- Paquette J, 2012, 'From decolonization to postcolonial management: Challenging heritage administration and governance in New Zealand', *Public Organization Review*, 12(2), 127–138
- Pearl R, 2016, *The story of the Hauraki Gulf*, David Bateman Limited, Auckland
- Pearl R, 2018, *Turning the tide: Integrated marine planning in New Zealand*, Environmental Defence Society, Auckland
- Rittel H W J and M M Webber, 1973, 'Dilemmas in a general theory of planning', *Policy Sciences* 4(2), 155–169
- Rosenau J N, 2000, 'Change, complexity, and governance in globalizing space', in J Pierre (ed), *Debating governance: Authority, steering, and democracy*, Oxford University Press, Oxford, 167–200
- Ruru J, 2014, 'Tūhoe-Crown settlement – Te Urewera Act 2014', *Māori Law Review*, 22, October
- Schollum A, 2017, *Implications of the Sea Change Tai Timu Tai Pari Marine Spatial Plan*, Martin Jenkins, Auckland
- Sea Change – Tai Timu Tai Pari, 2013, *Stakeholder Working Group: Terms of Reference*, Auckland Council, Auckland
- Sea Change – Tai Timu Tai Pari, 2016, *Hauraki Gulf marine spatial plan*, Waikato Regional Council, Hamilton
- Sewell B, 1984, *The Cross Creek site (N40/260) Coromandel Peninsula: A study of an archaeological investigation in spatial analysis and continuity in the New Zealand archaic*, Masters thesis, University of Auckland, Auckland
- Smelser N J and P B Baltes (eds), 2001, *International encyclopaedia of social and behavioural sciences*, Eslevier Limited, Amsterdam
- Stockin K A, 2008, *The New Zealand common dolphin (Delphinus sp.): Identity, ecology and conservation*, PhD thesis, Massey University, Auckland
- Sussex Inshore Fisheries and Conservation Authority, 2017, *Annual Report 2016–2017*, Sussex Inshore Fisheries and Conservation Authority, Shoreham-by-Sea
- Te Aho L, 2007, 'Tikanga Māori, historical context and the interface with Pākehā law in Aotearoa/New Zealand', *Yearbook of New Zealand Jurisprudence*, 10, 10–14
- Te Aho L, 2011, Power-sharing and natural resources, <http://posttreatysettlements.org.nz/power-sharing-and-natural-resources>
- Van Bueren E M, E Klijn and J F K Koopenjan, 2003, 'Dealing with wicked problems in networks: Analyzing an environmental debate from a network perspective', *Journal of Public Administration Research and Theory*, 13(2), 193–212
- West Coast Aquatic, 2012, *Coastal strategy for the West Coast Vancouver Island*, West Coast Aquatic, Port Alberni
- Wilson G and A Memon, 2010, 'The contested environmental governance of Māori-owned native forests in South Island, Aotearoa/New Zealand', *Land Use Policy*, 27(4), 1197–1209
- Zeldis J R and R I C C Francis, 1998, 'A daily egg production method estimate of snapper biomass in Hauraki Gulf, New Zealand', *ICES Journal of Marine Science*, 55, 522–534

ENDNOTES

- 1 Lockwood et al, 2013
- 2 Campbell, 2013
- 3 See Brady, 2015; Beverly et al, 2016
- 4 Kooiman, 2000; Rittel and Webber, 1973
- 5 Lockwood et al, 2013
- 6 Rosneau, 2000
- 7 Ostrom, 1990
- 8 Hardin, 1968
- 9 Hardin, 1968
- 10 Ostrom, 1990
- 11 Ostrom, 1990
- 12 Ostrom et al, 2007
- 13 Harris, 2015
- 14 Smelser and Baltes, 2001
- 15 Joseph, 2007, 683
- 16 Commission on Global Governance, 1995
- 17 Bernstein, 2005, 652
- 18 Joseph, 2007, 684
- 19 Joseph, 2007, 684
- 20 Karpen, 2010, 20
- 21 Joseph, 2007, 684
- 22 Van Bueren et al, 2003, 194
- 23 Dovers, 2005
- 24 Ansell and Gash, 2008
- 25 Ansell and Gash, 2008
- 26 Lockwood et al, 2013
- 27 Lockwood et al, 2013
- 28 Section 31, Oceans Act 1997
- 29 Section 2, West Coast Aquatic Governance Board Terms of Reference
- 30 Section 5, West Coast Aquatic Governance Board Terms of Reference
- 31 Section 7, West Coast Aquatic Governance Board Terms of Reference
- 32 Section 8, West Coast Aquatic Governance Board Terms of Reference
- 33 Section 1, West Coast Aquatic Governance Board Terms of Reference
- 34 Section 4, West Coast Aquatic Governance Board Terms of Reference
- 35 West Coast Aquatica, 2012
- 36 Section 3, West Coast Aquatic Governance Board Terms of Reference
- 37 Section 12, West Coast Aquatic Governance Board Terms of Reference
- 38 <http://www.westcoastaquatic.ca>
- 39 Her Majesty's Government, 2011
- 40 Section 5, Sussex Inshore Fisheries and Conservation Order 2010
- 41 Sussex Inshore Fisheries and Conservation Authority, 2017, 4
- 42 Sections 153 and 154, Marine and Coastal Access Act 2009
- 43 <http://www.sussex-ifca.gov.uk/governance>
- 44 Great Barrier Reef Marine Park Authority, 2014
- 45 Deloitte Access Economics, 2013

46 Section 6, Great Barrier Reef Marine Park Act 1975
 47 Section 17, Great Barrier Reef Marine Park Act 1975
 48 Craik, 2017
 49 Great Barrier Reef Marine Park Authority, 2017a, 12
 50 Section 7, Great Barrier Reef Marine Park Act 1975
 51 Great Barrier Reef Marine Park Authority, 2014
 52 <http://www.gbrmpa.gov.au/about-us/our-board>
 53 Great Barrier Reef Marine Park Authority, 2014
 54 Craik, 2017
 55 Te Aho, 2007
 56 Burton, 2007
 57 Deed in Relation to Co-governance and Co-management of the Waipa River, 2010, 3
 58 Kapea and Lenihan, 2013
 59 Linkhorn, 2011
 60 Controller and Auditor-General, 2016, 3
 61 Iorns Magallanes, 2012, 2
 62 Te Aho, 2011, 1
 63 Paquette, 2012, 128
 64 Harris, 2015, 222
 65 Norman, 2011, 27
 66 Nicolson, 2010
 67 Higgins, 2011, 2
 68 Wilson and Memon, 2010, 4
 69 Joseph, 2007
 70 Ruru, 2014
 71 Schedule 2, clause 2, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 72 Schedule 2, clause 2, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 73 Section 4, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 74 Section 22, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 75 Sections 11 and 12, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 76 Section 36, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 77 Section 5, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 78 Section 23, Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
 79 <https://www.waikatoriver.org.nz/about-the-waikato-river-authority>
 80 Sections 4 and 11, Te Urewera Act 2014
 81 Section 17, Te Urewera Act 2014
 82 <http://www.ngaituhoe.iwi.nz/te-urewera>
 83 <https://www.aucklandcouncil.govt.nz/about-auckland-council/how-auckland-council-works/kaupapa-maori/comangement-authorities-boards/tupuna-maunga-tamaki-makaurau-authority>
 84 Hauraki Gulf Forum, 2011
 85 Zeldis and Francis, 1998
 86 Gaskin and Rayner, 2013
 87 Constantine et al, 2012; Constantine et al, 2015
 88 Stockin, 2008; Dwyer et al, 2014
 89 Furey et al, 2008; Sewell, 1984
 90 Hartill, 2014
 91 Peart, 2016
 92 Preamble, clause 6, Hauraki Gulf Marine Park Act 2000
 93 Section 3(d), Hauraki Gulf Marine Park Act 2000

- 94 Campbell, 2013
- 95 <https://www.aucklandcouncil.govt.nz/about-auckland-council/how-auckland-council-works/harbour-forums/Pages/hauraki-gulf-forum>
- 96 Bradly, 2015, 10
- 97 Peart, 2018; Controller and Auditor-General, 2018
- 98 Sea Change – Tai Timu Tai Pari, 2013
- 99 Sea Change – Tai Timu Tai Pari, 2016, 179
- 100 Sea Change – Tai Timu Tai Pari, 2016, 179
- 101 Schollum, 2017, 4
- 102 Schollum, 2017, 4
- 103 Schollum, 2017, Appendix 1
- 104 Schollum, 2017, 3
- 105 Schollum, 2017, 4
- 106 Hauraki Gulf Forum, 2017, 24
- 107 Harmsworth et al, 2015
- 108 Craik, 2017, 10 and 14
- 109 Craik, 2017, 10
- 110 The Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014
- 111 Great Barrier Reef Marine Park Authority, 2017b
- 112 Sussex Inshore Fisheries and Conservation Authority, 2017, 19



The Hauraki Gulf Forum serves as an integrative body for the Hauraki Gulf Marine Park. It has been in operation for over 18 years. Its future has been the subject of active discussion amongst the Hauraki Gulf community for some years. This report draws on international literature, reports commissioned by the Forum and the Sea Change Tai Taimu Tai Pari marine spatial plan. It investigates a range of governance models operating in New Zealand and overseas. It then identifies potential options for the future role and configuration of the Forum. The report is designed to contribute to constructive debate on future governance arrangements for the Hauraki Gulf Marine Park, recognising its status as a taonga and national treasure.

